

COLLECTIVE BARGAINING
AGREEMENT BETWEEN
THE CITY OF FORT WORTH
AND THE
FORT WORTH PROFESSIONAL
FIREFIGHTERS ASSOCIATION,
IAFF LOCAL 440

EFFECTIVE OCTOBER 26, 2022
EXPIRES SEPTEMBER 30, 2026

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DEFINITIONS

“Agreement” refers to this Collective Bargaining Agreement between the City of Fort Worth and the Fort Worth Professional Firefighters Association, IAFF Local 440.

“Anniversary Date” means the civil service date of commission as a fire fighter.

“Association” means the Fort Worth Professional Firefighters Association, IAFF Local 440, its officers and agents authorized to act on its behalf.

“Backfill” means to fill a temporary staffing vacancy with either vacation relief personnel or with overtime.

“Bargaining Unit” means all full time, permanent, paid members of the Fort Worth Fire Department who were hired in substantial compliance with TLGC Chapter 143, or as modified by the provisions of this Agreement. This definition excludes the Chief, non-certified employees, retirees and fire fighter trainees.

“Base Pay” means a fire fighter’s base salary (at step level) exclusive of any additional special pays.

“Business Day” means Monday through Friday during normal business hours of 8:00 a.m. to 5:00 p.m. and shall not include any day when City Hall is not opened to the public for business.

“Calendar Day” means each day inclusive of weekends, and holidays.

“City” means the City of Fort Worth, Texas, acting by and through its authorized agents.

“City Manager” means the City Manager of the City of Fort Worth.

“Commission” means the Fire Fighters’ and Police Officers’ Civil Service Commission of the City of Fort Worth.

“Commission Date” or “Date of Commission” means the date a person takes the oath of service in the Department.

“Company” means a department apparatus and crew used to respond to emergencies in a first responder’s roles.

“Date of Hire” or “Hire Date” means the date a fire fighter trainee first attends Department orientation and training.

“Executive Board of Directors” or “Executive Board” means the members of the Association who are duly elected or appointed and serve as members of the Executive Board of Directors of the organization pursuant to its constitution and by-laws.

“Fire Chief” or “Chief” means the Fire Chief of the Fort Worth Fire Department. The term is synonymous with the term “department head” as used in the Local Government Code Chapter 143.

“Fire Chief” or “Chief’s designee” means the Chief or the individual he or she designates to act on his or her behalf.

“Fire Department” or “Department” means the City of Fort Worth Fire Department

“Fire Fighter” means any full time, permanent, paid member of the Fort Worth Fire Department who was hired in substantial compliance with TLGC Chapter 143 or as modified by the provisions of this Agreement. This definition excludes the Chief, non-certified employees, retirees and fire fighter trainees.

“Fire Fighter Trainee” or “Trainee” means an applicant who has been certified and accepted for employment by the City for the sole purpose of attending the Department’s training academy. A fire fighter trainee shall be required to attend and successfully complete the Fire Department’s training academy requirements prior to becoming a fire fighter.

“Formal Administrative Investigation” means an investigation initiated or conducted by the Fire Chief or officers specifically assigned to the investigation.

“Hours Worked” means all the time an employee is required to be on duty, on the employer’s premises or at a prescribed work-place. Fire fighters in Suppression shall have a maximum work hours standard of 106 hours in a 14-day cycle.

“Local Government Code Ch. 143” or “Chapter 143” means those portions of the Fire Fighter and Police Officer Civil Service Act, Texas Local Government Code Chapter 143 which are applicable to the City.

“Local Government Code Ch. 174” or “Chapter 174” means the Fire and Police Employee Relations Act, Texas Local Government Code Chapter 174.

“Party” or “Parties” means the City of Fort Worth or the Fort Worth Professional Firefighters Association, IAFF Local 440, or both when used collectively.

“Personnel Rules and Regulations” or “PRRs” means the City’s written policies applicable to fire fighters, as authorized under Chapter 2 of the Code of the City of Fort Worth, Article V, entitled "Human Resources," by Ordinance No. 11921, effective February 1, 1999, as amended from time to time.

“Preempt” shall have the same meaning as supersede.

“Preliminary Investigation” means meetings, interviews, questions, and/or discussions on topics that could possibly lead to a Formal Administrative Investigation, but conducted by officers in a fire fighter’s chain of command.

“Probationary Fire Fighter” means a fire fighter who has successfully completed the department’s training academy and is still in his or her probationary period.

“Regular Rate” shall have the meaning established by the Fair Labor Standards Act, 29 USCA § 201 et seq.

“Shift” means a 24-hour shift in the Operations Division from 8:00 a.m. to 8:00 a.m., unless otherwise specified.

“Staff Fire Fighter” or “Staff Personnel” means a fire fighter assigned to a 40-hour work week.

“Stanine” means nine evenly distributed groups of candidates who pass an exam.

“Suppression Fire Fighter” or “Suppression Personnel” means a fire fighter assigned to a 56-hour workweek.

“TLGC” means Texas Local Government Code.

ARTICLE 1

INTENT AND PURPOSE

Section 1. Intent of the Parties.

This Agreement is entered into by the City of Fort Worth, Texas hereinafter referred to as the “City” and the Fort Worth Professional Firefighters Association, IAFF Local 440 hereinafter referred to as the “Association.” It is the intent and purpose of this Agreement to achieve and maintain harmonious relations between the Parties, and to establish benefits, rates of pay, hours of work, and other terms and conditions of employment for all Bargaining Unit Members and to provide for the equitable and orderly adjustments of grievances that may arise during the term of this Agreement.

Section 2. Preemption.

To the extent that any provision of this Agreement conflicts with or changes any provision in TLGC Chapter 143, or in any other statute, executive order, local ordinance, or rule adopted by the City, or rule adopted by the Civil Service Commission, this Agreement shall supersede or preempt, and will control over, any such provision, as authorized by Section 174.006 of the TLGC.

ARTICLE 2
RECOGNITION

The City recognizes the Fort Worth Professional Firefighters Association, IAFF Local 440, as the sole and exclusive bargaining agent for all fire fighters as that term is defined in this Agreement.

ARTICLE 3 NON-DISCRIMINATION

Section 1. Non-Interference with Protected Rights.

Neither party shall discriminate against any fire fighter or fire fighter trainee on the basis of membership or non-membership in the Association. Furthermore, the City shall not discriminate against an Association member for carrying out the duties of the Association.

Section 2. Duty of Fair Representation.

The Parties acknowledge and recognize the Association's responsibility, as the exclusive representative under Chapter 174, TLGC, to fairly represent all fire fighters, in the negotiation, administration and enforcement of this Agreement. Nothing in this Agreement will be construed to impose on the Association any obligations to non-members of the Association greater than those imposed by law.

ARTICLE 4 MANAGEMENT RIGHTS

The Association recognizes that the management of the City and the direction of the Department are vested exclusively in the City, subject to applicable State and Federal laws and the terms of this Agreement. In exercising its management rights, the City acknowledges the importance of continuously providing quality fire protection and safety for its citizens.

These Management Rights include and give the City the ability to:

- A. Direct the work of its employees to include the scheduling of overtime work.
- B. Determine the number of classified positions in each rank in accordance to Section 143.021.
- C. Hire, promote, demote, transfer, assign, and retain employees in positions within the City, subject to Civil Service regulations and/or terms of this Agreement.
- D. Reprimand, suspend, discharge or terminate employees, subject to Civil Service regulations and/or the terms of this Agreement.
- E. Maintain the efficiency of governmental operations.
- F. Relieve employees from duties due to lack of work, subject to Civil Service regulations and/or the terms of this Agreement.
- G. Utilize the Department in emergency situations to protect life and property.
- H. Determine the methods, processes, means, personnel, assignment and deployment of apparatuses and equipment, and staffing levels (subject to any specific provisions of this Agreement) by which the department's functions are to be carried out.
- I. Determine personnel assignments, subject to the remaining specific provisions of this Agreement.
- J. The City agrees that it will not use civilians to perform duties that would not be permitted under TLGC Chapter 143, except as provided below. The City is authorized to use civilians for the following positions or units:
 - 1. Fiscal Management
 - 2. Personnel Support (administrative staff)

3. Clerical Support
 4. Delivery (supply)
 5. Fire Services/Vehicle and Equipment Maintenance (Provided that existing fire officer positions shall be maintained as the supervisor)
 6. Industrial Sewing Technicians (Protective Clothing Repair)
 7. Supply and Warehousing (Provided that existing fire officer positions shall be maintained as the supervisor)
 8. Purchasing
 9. Fire Photography
 10. Fire Protection Engineers
 11. Fire Protection Specialists
 12. Revenue collection and Billing
 13. Information Technology and Systems including CAD Administrator
 14. Office of Emergency Management
- K. Except as otherwise specifically provided in this Agreement, the City, acting through the City Manager and the Chief, shall retain all rights and authority which by law it is their responsibility to enforce.

ARTICLE 5

MAINTENANCE OF STANDARDS

Section 1. Economic Benefits, Privileges, and Working Conditions.

All economic benefits, privileges, and working conditions which are lawfully in effect in the Department as to matters subject to mandatory bargaining under TLGC Chapter 174, and enjoyed by the fire fighters of the bargaining unit, or set forth in written City or Department policy, as of the effective date of this Agreement, shall remain unchanged for the duration of this Agreement, except as noted in Section 2 of this Article. For the purpose of this Article, “written City or Department policy” means City Ordinances, the City’s PRRs, departmental SOPs, IOCs, Information Bulletins, Fire Department Rules and Regulations, and any written documentation, the official approval of which is by a substantially similar process as for those specifically referred to above. “Written City or Departmental policy” also means memos from the Chief, an Assistant Chief or a Deputy Chief.

The City, acting through the City Manager or the Chief, shall retain all authority to make unilateral changes to written Departmental policies that are considered management rights including those outlined in Article 4 of this Agreement, without the prior consent of the Association.

Section 2. Amending Written Policies.

Written City or Department policies concerning economic benefits, privileges, and working conditions may be implemented and or amended any time during the term of this Agreement with the mutual consent of the City and the Association. To be enforceable, such amendment or implementation must be in writing and signed by the Chief, if it concerns operational issues, or by the City Manager or designee, if funding is involved, and the Association President or designee. Any revisions to the City’s PRRs applicable to members of this bargaining unit shall be intended to clarify the organization, structure and readability of those PRRs, and not to make changes in economic benefits, privileges or working conditions. Those proposed changes to the fire fighter PRRs will be subject to the approval process set out in this section.

Section 3. Fire Department Intranet.

All departmental SOPs, Information Bulletins, and Fire Department Rules and Regulations shall be posted to the Department’s Intranet Site. Any written policies, the official approval of which is by a substantially similar process as for those specifically referred to above, shall also be posted to the Department’s Intranet Site in a separate section designated for “Written City or Departmental Policy”. “Written City or Departmental policy” also means IOCs or Memos from the Chief, an

Assistant Chief or a Deputy Chief. The unintentional failure to post any policy, as required herein, does not render it unenforceable.

Section 4. Pension Changes.

A. Nothing in this Article shall be interpreted to abrogate or supersede the provisions of Chapter. 2.5, Art. I, Section 2.5-1, et seq., of the City of Fort Worth Code (the Retirement Ordinance), or Article 6243i of the Texas Revised Civil Statutes (“Article 6243i”), but this Article does contractually require the City to provide certain advance notice to the Association, as specifically provided for herein.

B. If the City decides that further changes need to be made, the City will provide 180 days’ notice to the Association prior to taking any action that would reduce pension benefits for fire fighters and during that 180 days, the City Manager will solicit input from affected employee groups regarding such proposed changes.

C. In this article, the City has not bargained over pension benefits and has not included pension benefits as a bargaining item by including this language in the CBA. Sections 1 and 2 of this Article will not apply to fire fighter pension benefits and related contributions. Any dispute between the City and the Association, or any fire fighter, will be brought and resolved through judicial action in a court of competent jurisdiction, and not under the grievance provisions in this Agreement.

Section 5. Civil Service Commission Rules.

The City or the Civil Service Commission are not required to mail to any Commissioner, or the Fire Chief, or to each branch fire station, a copy of any proposed or enacted change to the rules promulgated by the Civil Service Commission. Any proposed or enacted changes to the rules promulgated by the Civil Service Commission shall be emailed to all members of the Department. This provision specifically preempts TLGC 143.008(e) (1) and (3).

ARTICLE 6

ASSOCIATION BUSINESS LEAVE

Section 1. Association Business Leave Pool.

At the beginning of the first pay period of each calendar year during this Agreement, the City will allocate 1684 hours of equivalent work-time hours to be utilized for an agreed Association Business Leave (“ABL”) Pool (the “Pool”). At the end of each calendar year during this Agreement, unused ABL hours up to 425 will carry over and must be used prior to the end of the next payroll year. All allocations must be used on a first-in, first-out basis. ABL shall be charged to the Pool at the rate of one (1:1) hours contributed to the Pool for every one (1) hour used based on the fire fighter’s work schedule leave accrual.

If the Chief declares an emergency, he or she may order the Association President or any Association fire fighters on Association Business Leave time to report to work for the duration of the emergency. ABL will be counted as hours worked for the purpose of calculating overtime. ABL hours may be used for the following: (a) representing members at a disciplinary hearing (to the extent such representation is permitted by law, or in this Agreement, and allowed by Department policy) or grievance meetings; (b) administering the terms of this Agreement; (c) attending meetings of the Association’s Executive Board; (d) attending regular business meetings of the Association; (e) attending other Association meetings, training programs, seminars, workshops, and conferences, and (f) for the time an Association negotiating team member spends preparing for, formally scheduled collective bargaining negotiating sessions with the City. ABL hours may not be used unless a member is scheduled to work.

All Association Business Leave must be posted on Telestaff (or other personnel system then in use) in accordance with the timelines regarding vacation leave. Association Business Leave shall not be subject to vacation quotas.

Section 2. Association Board of Directors.

Within thirty (30) Calendar Days after the execution of this Agreement, the Association shall notify the Chief in writing as to the names of the Association’s Board of Directors (to include disciplinary representatives). The Association shall thereafter promptly notify the Chief of any change in the composition of its Board of Directors. To the extent that any designated member(s) of the Association’s Board of Directors is otherwise scheduled to work, the member shall be permitted to attend the monthly Association membership meetings and the regularly scheduled Association Board meetings and, any specially called Board meetings. Use of this leave shall not require the Chief to backfill these positions.

Section 3. Compliance.

A fire fighter who is eligible to use ABL hours may elect to exchange time in lieu of using ABL hours. Any fire fighter exchange of time in lieu of using ABL hours shall be properly documented and in compliance with all local, state and federal rules and regulations, including SOP S 1302 R4 that is in effect on the effective date of this Agreement, or as revised pursuant to Article 5 of this Agreement.

Section 4. Special Assignment of Association President.

The City agrees that the Association President will be placed in a non-exempt staff position on a 40-hours per week schedule. This special assignment will be for the term of their presidency. The special assignment will give the Association President the latitude to deal with the duties of their presidency while retaining the privileges of their employment, while the Fire Chief retains the right to recall them to duty during an emergency or special event involving an overriding need for the protection of the citizens of Fort Worth.

The Fire Chief reserves their existing authority to revoke the special assignment for the Association President during emergencies or when the welfare of the citizens of Fort Worth is placed in jeopardy. The Association President, as part of their duties, reserves the right, as in the past, to mitigate grievances at all informal and formal levels in order to reduce the number of complaints and, in all cases, reserves the right to speak, visit with the men and women who are members of the Association, as well as to tour existing fire facilities and to review existing equipment toward the goal of improving the quality of work life for the fire fighters of the City of Fort Worth whom they represent. In addition, they may participate as the duly elected representative of the men and women of the Association in any discussion that may affect the quality of work life, health, and well-being of any Association member.

It is understood that the President of the Association shall suffer no loss of longevity, seniority, pension, days off, or any other benefits as a result of and during the term of such special assignment. Provided, however, the President shall be entitled to all certification and incentive pays owed to them at the time of their transfer to this special assignment. Upon the expiration of their term, the outgoing Association President will be in a relief role until they select a permanent assignment through the normal bid process.

Section 5. Special Assignment of Elected TSAFF or IAFF Officers.

The City agrees to allow no more than one (1) fire fighter elected as a union officer of the International Association of Fire Fighters (IAFF) or the Texas State Association of Fire Fighters

(TSAFF) to be afforded the same rights and privileges as stated above in Section 4 of this article. This fire fighter must be a member in good standing of the fire department.

Section 6. Collective Bargaining Negotiating Sessions.

The City agrees to release with pay each member of the Local 440 bargaining team for each formally scheduled collective bargaining negotiating session if they are scheduled to work. Prior to the first scheduled bargaining session the Association President shall provide the City with a list of up to seven (7) bargaining team members eligible to be released. This paid time will begin at least thirty (30) minutes prior to the scheduled start of and ending no sooner than thirty (30) minutes after the conclusion of, each collective bargaining negotiating session.

Section 7. Other Associations.

This Article does not prevent the prior practice of the Chief allowing leave time to be awarded for other employee associations.

ARTICLE 7

INTERNAL COMMUNICATIONS

Section 1. Email Communication.

Subject to the Department SOPs, the City's rules and regulations, (particularly the Administrative Regulation regarding "Electronic Communications Use Policy"), and the applicable provisions of this Agreement, the Association may utilize electronic communications ("e-mail") to communicate with Association members regarding matters of general interest of the Association in accordance with the following restrictions and limitations:

- a. The City will grant access to the ZZ_CFD distribution group for the use by the Association's Executive Board to communicate with its members only the following:
 - 1. Meeting notices and agendas; and
 - 2. Notices advising members to review information on the Association's website, but not including specific links to the Association's website.
- b. The Association Board members may use the City e-mail system to communicate on Association business among themselves. Individual Association members may not use the e-mail system to advocate for or against issues, campaign for one's self or others or promulgate personal issues as Association business.

Section 2. Specific Subjects Only.

Association e-mail communications shall relate solely to the following subjects:

- a. Recreation and Social Affairs or other non-political activities of the Association
- b. Association Meetings
- c. Association Elections
- d. Reports of Association Committees
- e. Rulings or policies of the State or National Association, without added commentary
- f. Legislative Enactments and Judicial Decisions Affecting Public Employee Labor Relations, without added commentary

Section 3. Prohibited E-mail Subjects.

Association e-mail communications shall not contain any political commentary, any solicitation for membership in, or financial contributions to, any labor organization, special interest organization, or political action organization, or any derogatory or offensive propaganda or commentary which reflects negatively upon the City, its officials, its employees, City employee associations or groups, or upon citizens of the City.

On a case-by-case basis, the Chief or Chief's designee may consider requests from individual fire fighters for approval to distribute e-mail communications regarding solicitations for fire fighters (or their families) needing financial assistance or other forms of assistance.

ARTICLE 8

PAYROLL DEDUCTION

Section 1. Payroll Deductions.

The City shall bi-weekly deduct an amount from the pay of each individual fire fighter who has voluntarily authorized such deduction for remittance to the Association. The amount of pay deducted from each member of the Association shall be an amount authorized by the Board of the Association. The deduction amount shall remain constant until the City is notified in writing, by paper or electronic form by an authorized member of the Board to change the deduction amount. The Association may change the amount of the deduction with thirty (30) Calendar Days' notice to the City in writing. The total amount of deduction and a list of each member's total deduction shall be remitted by the City to an account specified by the Board of the Association within ten (10) business days from the date the amount is taken from the member's pay. After execution of this Agreement, fire fighters who wish to join the Association will complete the appropriate City paper or electronic form to authorize the bi-weekly deduction amount. Any individual member of the bargaining unit wishing to voluntarily withdraw authorization for deductions or change the amount of their deduction must personally complete the appropriate paper or electronic form as required by the City.

Section 2. Deduction Fees.

All amounts deducted pursuant to this Article shall be paid to the legally designated representative of the Association in accordance with the procedures and costs established by the City Finance Director. The current cost structure of \$0.05 per deduction shall be maintained until such time as the cost is changed to reflect a more accurate assessment of cost. The City Finance Director has the sole discretion to establish charges for deductions. The cost of deductions is subject to annual review. The actual cost shall not exceed \$0.10 per deduction for the duration of this Agreement. The cost per deduction shall be no more than the cost applied to other employee associations.

Section 3. Special Assessments.

The Association shall be permitted to notify the City Finance Director of the need to assess its members via payroll deduction. A single authorization shall be utilized for deductions approved by the membership of Local 440 in accordance with its Constitution & By-Laws. At the time that the Association informs the City Finance Director of the need for the assessment, the Association will inform the City Finance Director of the per-person amount of, and the reason for, the proposed assessment.

Section 4. Indemnification.

The Association shall defend the City and hold the City harmless against any and all claims, demands, suits or other forms of legal action that may arise out of, or by reason of, any actions taken by the City, or any employee of the City in complying with provisions of this Article. The Association and the City shall jointly select and direct counsel retained for such defense, and the Association shall further assist and cooperate with the City during said defense.

ARTICLE 9 WAGES

Section 1. Payment.

Subject to all of the other provisions of this Agreement, the wages of the fire fighters covered by this Agreement shall be paid, during the four (4) year term of this Agreement, in accordance with the wage rates, terms, and conditions described in the structured pay plan attached in Appendix A, which is incorporated by reference. Annual step pay increases reflected in Appendix A for eligible fire fighters shall continue through the one-year evergreen period as stated in Article 33 of this Agreement or until such time as a new agreement is reached, whichever comes first.

Section 2. Wages.

In summary, wages will be paid according to the following schedule, as shown in Appendix A, during the term of this Agreement:

FY 2022-2023: Beginning with the pay period that begins on November 5, 2022, during FY 2022-2023; 5.0% across-the-board + annual step pay increases described in the structured pay plan attached in Appendix A for those fire fighters eligible on their applicable anniversary date.

FY 2023-2024: Effective on the first full pay period after October 1, 2023, for FY 2023-2024, 3.1% across-the-board + annual step pay increases described in the structured pay plan attached in Appendix A for those fire fighters eligible on their applicable anniversary date.

FY 2024-2025: Effective on the first full pay period after October 1, 2024, for FY 2024-2025, 3.0% across-the-board + annual step pay increases described in the structured pay plan attached in Appendix A for those fire fighters eligible on their applicable anniversary date.

FY 2025-2026: Effective on the first full pay period after October 1, 2025, for FY 2025-2026, 3.0% across-the-board + annual step pay increases described in the structured pay plan attached in Appendix A for those fire fighters eligible on their applicable anniversary date.

For those occasions when a fire fighter's anniversary date occurs the same day when an across-the-board base pay increase is implemented, the order of implementation will be the across-the-board base pay increase, then the step increase.

Section 3. Preemption.

This Article shall preempt any contrary provisions including those set forth in TLGC 143.041(b), TLGC 143.041(c), 143.042, 143.044, and 141.032 and any local ordinances, executive orders, or rules adopted by the City or Commission, it being expressly agreed and specifically so provided under the authority of TLGC 174.005 and 174.006.

ARTICLE 10 OVERTIME

Section 1. Emergency Call Back Overtime.

Emergency Call Back Overtime (“ECOT”) is a “premium pay” and shall always be paid at time and one half (1 ½) of the regular rate of pay. Whenever a fire fighter is called back to work for an emergency after the fire fighter’s regular working hours (due to an emergency situation as declared by the Chief), the fire fighter shall be eligible for ECOT and shall be paid a minimum of four (4) hours overtime. Fire fighters shall be paid in this manner for all hours worked during the callback until the fire fighter’s duty day begins, in which case, the additional compensation will cease. Hours worked that are paid as ECOT premium pay do not count as hours worked for the purpose of calculating eligibility for regular or voluntary overtime.

No fire fighter may be required to work more than 72 continuous hours except under the provisions of Section 1.

Section 2. Mandatory Overtime (Force-Hire).

Mandatory/forced-hire overtime shall be paid as ECOT premium pay. Hours worked that are paid as ECOT premium pay do not count as hours worked for the purpose of calculating eligibility for regular or voluntary overtime.

Section 3. Voluntary Overtime (CSOT).

When a fire fighter volunteers to work, and is selected to work, on an apparatus in order to meet daily staffing requirements, resulting in hours worked beyond a fire fighter’s regularly scheduled work hours, but not caused or initiated by an emergency, those additional hours will be defined as Constant Staffing Overtime (CSOT) and paid as Regular Overtime (FLSA). The term “Apparatus” as used in this Article, refers specifically to active service status Battalion Chief vehicles, Safety Officer vehicles, Shift Commander vehicles, fire engines, fire quints, fire ladders, AARF companies, brush trucks, two-person emergency vehicles and HazMat Squads. Hours worked beyond a fire fighter’s regularly scheduled work hours, other than as described in Sections 1 and 2, will be paid as Regular Overtime.

Section 4. Regular Overtime (FLSA).

The Association recognizes that the City compensates Suppression fire fighters as allowed in 20 U.S.C. §107(k) (“Section 7(k)”) of the Fair Labor Standards Act, as amended. Regular overtime for a Suppression fire fighter is defined as hours worked in excess of 106 hours in a 14-day pay

cycle. Regular Overtime for a Staff fire fighter is defined as hours worked in excess of 40 hours in a 7-day work week. The use of Sick (S), and Family (F), leave will not count as hours worked for purposes of calculating eligibility for regular or voluntary overtime.

Section 5. Vacation Relief Ratio.

The number of vacation relief personnel utilized on a daily basis shall not exceed 20% of the total necessary to satisfy the minimum daily staffing requirements, as set out herein. The minimum daily staffing requirement includes: all fire companies staffed as prescribed in Article 17 “Staffing Standards,” one shift commander, seven Battalion Chiefs, one shift tech, one duty paramedic, and two SCBA staff. This vacation relief ratio can be used to fill any vacancies caused by any fire fighter who is assigned to a shift but is off duty using available leave or is involved in any assigned departmental business.

The-minimum daily staffing requirement as of September 30, 2022 is 248.

Changes to the minimum daily staffing requirement during the duration of this Agreement (e.g., the construction of new fire stations) will alter the vacation relief staffing maximum as the 20% threshold is applied to the new minimum daily staffing number.

The vacation relief staffing percentage may be exceeded for up to ninety days for new fire station construction delays.

Section 6. Preemption.

This Article shall preempt any contrary provisions including those set forth in TLGC 142.0015, and any local ordinances, executive orders, or rules adopted by the City or Commission, it being expressly agreed and specifically so provided under the authority of TLGC 174.005 and 174.006.

ARTICLE 11

COMPENSATORY TIME OFF

As permitted by the Fair Labor Standards Act (“FLSA”), 29 U.S.C. § 207(o), the City may compensate fire fighters, if requested by the fire fighter, with compensatory time in lieu of overtime compensation required by the FLSA, 29 U.S.C. § 207 subject to the discretionary approval of the Chief. The Parties agree that if compensatory time is granted, it shall be administered in accordance with the City’s Personnel Rules and Regulations applicable to fire fighters and shall comply with state and federal law. The use of the term “fire fighter” in this Article shall not be construed as affording the right of time-and-one-half remuneration (whether overtime or compensatory time) except as provided by FLSA, 29 U.S.C. § 213 and TLGC 142.0015(e). This Article preempts Section 142.0016 TLGC only to the extent of any inconsistency with that section.

ARTICLE 12
VACATION/HOLIDAY LEAVE

Section 1. Vacation Leave.

Vacation leave for sworn fire fighters shall be accrued according to the following chart:

	Staff or 8-Hour Day Fire Fighters		Suppression or 12-Hour Day Fire Fighters	
Service Time from date of hire	Maximum Accrual Per Year (Hours)	Accrual Rate Per Pay Period (Hours)	Maximum Accrual Per Year (Hours)	Accrual Rate Per Pay Period (Hours)
Fire fighter with fewer than five years of service	120	4.62	180	6.93
Fire fighter with 5 years of service	136	5.23	204	7.85
Fire fighter with 10 years of service	144	5.54	216	8.31
Fire fighter with 15 years of service	160	6.15	240	9.23
Fire fighter with 20 years of service	184	7.08	276	10.62

Section 2. Vacation Time Management.

The authorized number of allotted vacation positions can be exceeded if approved by the Chief or designee. Beginning October 26, 2022, there will be no fewer than 38 suppression vacation slots per day except under a declared emergency. Beginning Fiscal Year 2024 and for the remainder of this Agreement, the number of vacation slots will be no fewer than 40. Floating days shall not be included in this number.

Under the direction of the Chief or designee, Battalion Chiefs are responsible for managing vacations and other leave time for their battalion/shift to provide the most effective emergency response capability possible.

Section 3. Vacation Leave Transfer.

Fire fighters may transfer accrued vacation leave (no other type of leave may be transferred) into a non-civil service employee's Short Term Sick Leave/Family Leave account or into a civil service employee's Sick or Family Illness Leave account in order to ensure continuing income for an employee who must be absent from work due to a major personal illness or injury or due to an immediate family member's major illness or injury which requires the presence of the employee. In the event of conflict, the PRRs policy for Vacation Leave Donations shall apply. Donated leave will not count toward any minimum required leave usage provisions listed in this Article.

Section 4. Holiday Pay and Accrual.

Time accrued for all holidays shall be based on either an eight (8) hour day for Staff Personnel or a twelve (12) hour day for Suppression Personnel.

Suppression Personnel shall be paid for hours worked (eight or sixteen depending on shift) on a holiday (as defined below) at time and one half (1 ½) holiday rate. For purposes of this Article, only, holiday rate means an individual's step rate within their rank. Suppression Personnel shall accrue twelve (12) holiday hours for each holiday observed unless the fire fighter is in a no-pay status.

Staff Personnel shall be paid for hours worked on a City-recognized holiday (except as modified by Section 5 of this Article) at time and one half (1 ½) holiday rate. Staff Personnel who work on the City-recognized holiday shall accrue eight (8) holiday hours.

If the City-recognized holiday falls on a ten (10) hour staff person's off day, he or she shall accrue eight (8) holiday hours. Staff personnel shall be allowed to move their regular day off with supervisor approval.

If a fire fighter (suppression or staff) is scheduled to work on a holiday (actual or City-recognized) and is absent for any reason he or she shall be charged the requested leave time if available and accumulate the appropriate holiday hours for his or her position.

Those hours worked by a fire fighter who is not scheduled to work on a day that is a holiday shall be compensated at two (2) times their regular rate of pay. The hours worked that are paid to a fire fighter at two (2) times their regular rate of pay do not count toward the fire fighter's eligibility for regular overtime under Article 10, Section 4.

Section 5. Holidays.

Department personnel are granted nine (9) holidays per year.

City-recognized holidays may not always align with the actual holiday day and are: New Year's Day, M.L.K. Day, Memorial Day, Juneteenth, Independence Day, Labor Day/9-11 Remembrance Day, Thanksgiving Day, Day after Thanksgiving, and Christmas Day. As per the City's PRRs, the City may officially recognize a holiday on a day which is not the actual holiday.

Suppression Personnel and any Staff Personnel who are required by their position to work on the actual holiday shall receive Holiday Pay and accrue Holiday Hours for work on that actual holiday, regardless of when it is recognized by the City. Suppression Personnel and those Staff Personnel not included above, shall follow only the official City-recognized holiday schedule.

Fire fighters are also granted one (1) Personal Holiday per year (eight (8) hours per year for Staff Personnel and twelve (12) hours for Suppression Personnel).

Section 6. Vacation/Holiday Accumulation and Use.

A fire fighter, during the initial twelve (12) month probationary period, may petition the Chief in writing for a waiver to use accrued leave, for the specific purpose of taking leave for the bereavement of the death of an immediate family member, as defined in the Personnel Rules and Regulations, and that request will not be unreasonably denied.

There shall be no limit on maximum accumulation of vacation or holiday time. Vacation hours are available for use after twelve (12) months from date of hire. Upon separation of employment, fire fighters shall receive payment of all accrued vacation and holiday time, except that fire fighters who terminate from the City within twelve (12) months from their date of hire shall not be paid for accrued vacation time.

Fire fighters may accrue unlimited personal holiday hours, including any specially granted by the City Manager, and those hours accrued after the effective date of this Agreement will not be subject to any time limitations for usage. Fire fighters who terminate employment for any reason will not receive payment for any unused personal holiday hours upon separation from the City nor shall fire fighter personal holiday hours be part of any future leave sell back. Personal holiday time may only be taken in minimum increments of fifteen (15) minutes.

Beginning the first full calendar year after commission date, Fire fighters are required to use two (2) weeks (120 hours for 56-hour suppression personnel and 80 hours for 40-hour staff personnel) accrued holiday time and/or vacation time per calendar year. Failure to use the minimum required

leave will result in the difference between the amount used and the minimum required leave usage being deducted from accumulated vacation leave at the beginning of the next calendar year.

A fire fighter who is not able to use two (2) weeks of accrued holiday and/or vacation time in a calendar year due to illness or injury may petition the Chief or designee in writing for a waiver of this requirement. The Chief or designee will provide a written ruling on the request to the petitioner within five (5) calendar days of receipt of the request. The Chief or designee's decision will be final. Decisions resulting in a waiver to the requirement will be forwarded to the City Human Resources Department for implementation. Sending a request or response via email shall qualify as a writing.

Unless otherwise approved by City Council fire fighters may not participate in the City's yearly vacation leave and/or accrued holiday leave sell back program (when implemented by the City Council).

Section 7. Reopener Provision For Changes in Leave Structure.

In the event that the City changes, or proposes to change, its current leave structure as set forth herein during the term of the agreement, the City shall be entitled to reopen Collective Bargaining negotiations with the Association to discuss any proposed changes. The parties agree that those negotiations may result in changes in some leave benefits in order to provide similar leave benefits for all City employees. If Collective Bargaining negotiations are reopened as provided herein, they will be limited to such differences in the current leave structure and the proposed new leave structure that the City identifies, in writing, 30 days before the beginning of the reopened negotiations. Such reopened Collective Bargaining negotiations must be completed within 60 days after the face-to-face negotiations begin, unless the Association and the City agree, in writing, to extend the negotiations.

Any Agreement between the Association and the City that results from the reopened Collective Bargaining negotiations, will not be effective unless and until it is approved by the City and the Association pursuant to the requirements of Article 32 of this Agreement.

Section 8. Preemption.

This Article shall preempt any contrary provisions including those set forth in TLGC 142.0013, and any local ordinances, executive orders, or rules adopted by the City or Commission, and specifically preempts Section 142.0013(c) to the extent that section can be read to obligate the City to provide any fire fighter any additional vacation days, holidays or days in lieu of vacation days or holidays granted to any other municipal employees in a labor agreement, it being expressly agreed and specifically so provided under the authority of TLGC 174.005 and 174.006.

ARTICLE 13

WORKING AGREEMENT

Section 1. Substitutions.

Any fire fighters of the bargaining unit, who, because of a non-occupational illness or injury, are injured or sick and have depleted his or her accrued leave benefits, to the limits stated in Section 4B1 of the Working Agreement Rules, Regulations and Procedures, may self-arrange or make a request to the Association for one or more fire fighter(s) of the bargaining unit to substitute for him or her. Substitution personnel working for another fire fighter under this provision need not be of the same classification as the fire fighter receiving the Working Agreement benefit, provided there are sufficient eligible fire fighters on-duty to fill those positions requiring specific classifications.

- a. This Section shall cover a member for a maximum cumulative period of up to 24 months during a fire fighter's career.
- b. No fire fighter of the bargaining unit shall be eligible to receive benefits under this Section after qualifying for retirement under the then-current City retirement program as codified in 6243i of the Texas Revised Civil Statutes and Sections 2-201 – 2-235 of the City's Code of Ordinances (as amended) and any relevant rules promulgated by the board of the Employees Retirement Fund.
- c. The disabled fire fighter's personnel record shall reflect continuous service with the City; the record shall not recognize a break in the fire fighter's years of service as a result of availing him/herself of substitutes under this Section.
- d. Under no circumstances shall a fire fighter who is using substitutes under this Section be allowed to perform non-department related work.
- e. The City understands that the Association's Working Agreement and Rules, Regulations and Procedures promulgated subject to this Article will include provisions concerning donations of time by fire fighters not certified to work in Operations, and will provide, in substance:

Fire fighters not certified to work in Operations may donate up to 16 hours, as adjusted for pay rates, in lieu of working one 24 hour shift. This adjustment shall be calculated by Fire Department payroll personnel.

Example: Step 7 Fire Captain (staff) 40 hour rate = \$40.05

Step 5 Fire fighter (operations 24 hour shift) = \$512.64
Therefore: $\$512.64 / \$40.05 = 12.80$ hours donated by Captain not certified to work Operations.

- f. Accrued time of the member receiving benefits shall be used when a substitute is unavailable to work the shift.

Section 2. Substitution Approval.

All substitutions contemplated herein are subject to the Chief's or his or her designee's, approval as defined or limited by 29 C.F.R. 553.31. Nothing in this Article shall abrogate the Chief's ability to determine a fire fighter's fitness for duty or any other eligibility criteria of the Department.

Section 3. Compliance with Federal Law.

The City has agreed to facilitate its fire fighter's shift exchanges, recognizing that a fire fighter's choice to do so is at the fire fighter's sole option and for the fire fighter's convenience. There is no incentive, encouragement, benefit or promise of any reward or advantage by or on behalf of the City in connection with this option. Notwithstanding any provision of this Agreement, the City may make any changes in policies or practices necessary to comply with state and federal law and regulations, including but not limited to 29 C.F.R. 553.31, as to the City's involvement, regulation, or approval of fire fighter participation in this voluntary option.

Section 4. Rules.

The Association may promulgate internal Working Agreement Rules, Regulations and Procedures subject to this Article. The City has informed the Association that it has no objections to the Association's Working Agreement, Rules, Regulations and Procedures, and the modifications made as of the effective date of this Agreement.

Section 5. Defense.

The City shall defend all claims against the Association (and its Executive Board, if named), with counsel of the City's choice, which arise directly from the implementation of the specific terms in this Article and shall pay any and all claims finally adjudicated based thereon involving joint liability of the City and the Association. This provision does not preclude the Association from retaining its own defense counsel, at its expense, and the City shall reasonably cooperate with counsel designated by the Association to participate. The City's obligation to defend and/or pay does not extend to liability based on the rules, regulations and procedures, or administrative practices of the Association, which are the sole prerogative of the Association.

ARTICLE 14

GROUP HEALTH BENEFITS

Section 1. Coverage and the Provider.

a. On May 1, 2018, the Association and the City entered into a Healthcare Contract that obligates the Association to take appropriate steps to create and administer a Trust and Local 440 Benefit Plan for Recruits, Fire Fighters, Future Retirees, Pre-Medicare Retirees and eligible spouses and dependents. The Healthcare Contract and all successor Healthcare Contracts will be negotiated between the City and the Association and must be ratified by a majority of the members of the Association and approved by the City Council before any such Healthcare Contract will be effective. Such Healthcare Contracts may extend beyond the term of this or any successor Collective Bargaining Agreement.

b. All capitalized terms used in this Article that are defined in the Healthcare Contract shall have the same meaning as stated in the Healthcare Contract.

c. The Association will continue to operate a Trust pursuant to the terms of the Healthcare Contract.

Section 2. Active Fire Fighters as Future Retirees.

a. The parties acknowledge that the Association does not represent current Retirees, that is, those former City fire fighters who retired from the City before May 1, 2018. However, the parties acknowledge that the Association represents active Fire Fighters who may retire from the City after May 1, 2018. Those persons are referred to in this Article as “Future Retirees.”

b. The parties also recognize that the Association does not represent Recruits. However, through the Healthcare Contract, the Association and the City have agreed to certain responsibilities relating to Recruits, including that such Recruits will be covered by the Local 440 Benefit Plan and that the City’s Contributions to the Local 440 Benefit Plan will include funds to be used by the Trust created by the Association to provide healthcare coverage for Recruits. Those obligations are set out in the Healthcare Contract and neither party can file a grievance under this CBA, asserting that, with respect to Recruits, the other party has failed to perform a duty or obligation set out in this CBA or the Healthcare Contract.

c. Active Fire Fighters and Future Retirees shall no longer have any access to the City’s health plan as described in the following paragraphs, either as an active Fire Fighter or as a Future Retiree, so long as the Association continues to offer a healthcare plan through the Trust referred to in this Amended Article.

i. The Association agrees to provide a healthcare plan through the Trust to Recruits, Fire Fighters, Retirees and Future Retirees and eligible spouses and dependents, and persons employed by the Association or the Trust specifically to administer the Trust until they become eligible for Medicare. The City and the Association agree that the City has no obligation to provide a healthcare plan to Recruits, Fire Fighters, Retirees, or Future Retirees, so long as the Association continues to offer a healthcare plan through the Trust referred to in this Article. The City will make Trust Contributions in accordance with the terms of the Healthcare Contract, and any successor Healthcare Contracts.

ii. The City agrees to provide a health insurance plan for every Medicare-eligible Future Retiree. The City agrees to provide a health insurance plan for every Medicare-eligible spouse of a Future Retiree. The plan shall be at the same cost to the Future Retiree as that offered at that time to other similarly-situated non-fire fighter retirees of the City who have reached the minimum age for Medicare eligibility, so long as the benefit continues to be offered to other retirees of the City. At any point in the future that the City contracts with the Association to expand the Trust to provide a health insurance plan for Retirees who have reached the age at which they are eligible for Medicare, the Future Retiree will be required to transition to the Trust plan coverage.

iii. This Article is binding on Future Retirees, eligible spouses and dependents for as long as this Agreement is in effect, and the provisions of the attached Healthcare Contract are binding on Fire Fighters, Future Retirees, eligible spouses and dependents for the period of time set out in the Healthcare Contract, and that term may extend beyond the term of this Collective Bargaining Agreement.

iv. The Parties agree that the City has no liability for any services rendered or claims paid or not paid by or through coverage provided by the Trust with respect to any claim incurred during the term of this Agreement. Every Future Retiree waives his or her right to sue the City regarding the level of coverage or subsidy, if any, to be provided by the City through its contributions to the Trust. The Parties agree that every Future Retiree also waives the right to sue the City regarding the subsidy, if any, to be provided by the City, if the Trust plan discontinues, and the Future Retiree resumes coverage with the City. However, this provision does not preclude the Future Retiree benefitting from a court ruling in favor of non-fire fighter retirees participating in the City's plan regarding such subsidy. The Parties further agree that the resumption of coverage for every Future Retiree shall be subject to the payment of the applicable premium, provided such premium and the

City's subsidy of the coverage is provided on substantially the same terms as that which the City provides to similarly-situated City employees or retirees.

Section 3. Trust Contributions.

The Parties agree that the amount of City Contributions will be determined by the calculations and terms set out in the Healthcare Contract between the City and the Association.

Section 4. Trust Investments.

The parties acknowledge that a request for a legal opinion will be presented to the Texas Attorney General ("Texas AG") regarding the options available to the Trust for investments, including whether the Texas Public Funds Investment Act ("the PFIA") or other Texas law applies to the Trust, and specifically to investments made by the Trust. After receipt of that legal opinion, the parties agree to work together, in good faith, and in consultation with experienced employee benefits counsel, to determine what changes, if any, need to be made to the language of the Trust, and any related documents, in light of that legal opinion. If the parties cannot agree on the effect of that legal opinion on the options available to the Trust for investments, either party can seek to have the issue resolved by a court of competent jurisdiction.

If the Texas AG declines to render a legal opinion, as requested above, the parties agree that they will work together, in good faith, and in consultation with experienced employee benefits counsel, to determine the appropriate steps necessary, if any, for the Trust to comply with applicable law, or, alternatively, if the parties disagree on the need for, or the text of, any changes to the language of the Trust, or the options available to the Trust for investments, either party may seek to have the issue resolved, by seeking an opinion or ruling from the IRS, and/or resolution through a court of competent jurisdiction.

Section 5. Employee Assistance Program and Other Insurance.

The City shall continue to provide an Employee Assistance Program and basic and supplemental life and AD&D insurance, at employee expense, for all active fire fighters similar to that provided to all other City employees and subject to change at any time in the future.

Section 6. Incorporation into Successor Collective Bargaining Agreement

a. The parties hereby agree that Appendix B, the Healthcare Contract is incorporated into this Collective Bargaining Agreement.

b. This Article will remain in full force and effect until the 30th day of September, 2027, unless, before that date, it is superseded by a new Collective Bargaining Agreement between the parties. If the Current Collective Bargaining Agreement between the parties expires, including the evergreen year, on September 30, 2023, the parties specifically and purposefully agree that the terms of this Article will survive the expiration of that Collective Bargaining Agreement.

Section 7. Preemption.

This Article shall preempt any contrary provisions set forth in Ch. 2, Art. V, Sec. 2-190 of the Fort Worth Code and Chapter 175 of the Texas Local Government Code provided however that nothing herein shall be construed or interpreted to preempt Section 2-190(c) or (d) or otherwise require the City to subsidize health care coverage for any individual who is not otherwise eligible for a subsidy.

ARTICLE 15

RETIREE HEALTH BENEFITS

Section 1. Fire Fighters Hired Since January 1, 2009.

For the sole benefit of fire fighters hired on or after January 1, 2009, the Association established a tax exempt IRS Compliant 501(c)(9) Voluntary Employee Beneficiary Association (VEBA). The \$1.6 million set aside pursuant to the 2010 Collective Bargaining Agreement has been deposited in the Association's VEBA. Mechanisms for additional member contributions will be evaluated for the next contract cycle.

Section 2. Preemption.

This Article shall preempt any contrary provisions set forth in Ch. 2, Art. V, Sec. 2-190 of the Fort Worth Code, and Chapter 175 of the Texas Local Government Code, provided however that nothing herein shall be construed or interpreted to preempt Section 2-190(c) or (d) or otherwise require the City to subsidize health care coverage for any individual who is not otherwise eligible for a subsidy.

ARTICLE 16
SUPPLEMENTAL FIRE FIGHTER RETIREMENT PLAN

The City and the Association, upon mutual agreement, reserve the right to reopen negotiations to consider the establishment of a Supplemental Fire Fighter Retirement Plan (SFRP). It is the intent of the Association to establish a defined contribution retirement plan to supplement benefits, and the City is willing to discuss their proposal. There shall be no City contributions on behalf of the fire fighters' benefits in the SFRP.

ARTICLE 17

STAFFING STANDARDS

Section 1. Assignments.

Fort Worth Fire Department management reserves the right to assign any employee to any position within the Department. Final authority to determine an employee's assignment rests with the Fire Chief. This Article in no way inhibits the authority of the Fire Chief to make assignments as deemed necessary for the effective and efficient operation of the Department.

Section 2. Four-Person Staffing.

The City shall continue its practice of staffing with four (4) persons (consisting of: one (1) officer, one (1) engineer, and two (2) fire fighters), active service status Engine companies and Truck companies, including quints (as commonly recognized apparatus by the Association and Department), Hazmat Squad, and ARFF companies (maintaining the existing practice of one four-person crew per ARFF company). These apparatuses may be temporarily reduced to three (3) persons, yet remain in active service, if a fire fighter assigned to work on an apparatus is: (a) off duty using available leave for up to five (5) hours; or (b) is involved in any assigned departmental business, for up to five (5) hours, including travel time. This practice may be used once daily per apparatus.

Section 3. Two-Person Companies.

In order to maximize staffing and equipment resource efficiencies and better scale response levels to match specific incident requirements, the Chief may implement utilization of two-person emergency response companies as part of future departmental growth plans. Two-person companies can only be utilized to supplement existing four-person companies at specific stations where call volumes or other factors necessitate service expansion. These two-person companies shall not replace any existing four-person companies and shall be staffed with an Officer and an Engineer. Stations which house these units, when such units are constantly staffed, shall have a Captain and Lieutenant assigned on each shift. Two-person companies shall utilize smaller emergency vehicles. These units shall not be dispatched to structure fires as a structural firefighting unit or to perform any structural firefighting duties. Under unusual circumstances where these two-person crews may encounter a life-threatening situation, including arriving at a structure fire, prior to any other units, crews may perform rescue functions if necessary. The number and location of two-person emergency response companies is at the full discretion of the Chief subject to the conditions set forth in this Article.

Section 4. Meacham Airport.

The primary apparatus at Meacham Airport is excluded from the staffing standards noted above. ARFF apparatus at Meacham Airport may be staffed solely with a minimum of two (2) ARFF certified fire fighters. If staffed as a two-person company it shall consist of an Officer and an Engineer.

Section 5. Utilization.

This Article shall not affect the City's or the Chief's rights to set, determine, change, or modify the number, locations, service status, or utilization of fire stations, facilities and apparatus.

ARTICLE 18
PROCEDURE FOR FILLING AND PROBATIONARY PERIOD FOR BEGINNING
POSITIONS IN THE FORT WORTH FIRE DEPARTMENT

Section 1. Recruitment.

The Chief will determine when the following procedures, outlined in this Article for the filling of entry positions in the Department, will take place. Recruitment for fire fighter candidates shall be a cooperative effort between the Department and the Human Resources Department. In all cases, recruitment efforts will be publicized and recruitment notices will be posted on the City's Job Announcement web page. Recruitment may be conducted on a continuous or periodic basis. The Department may test at different locations, but all testing shall be conducted simultaneously for the particular eligibility list being established. A candidate may be tested only once for a specific eligibility list.

Section 2. Eligibility.

Eligibility to become a fire fighter will be determined by a candidate's ability to meet the minimum standards established in the Local Civil Service Commission Rules. The Association shall be afforded the opportunity to assign representatives as unpaid proctors during the physical ability test and distance run. Candidates must meet all minimum standards and requirements to be eligible for future licensing by Texas Commission on Fire Protection. A candidate must not be younger than eighteen (18) years and must not have reached thirty-six (36) years of age by the date that the entry-level test required of that candidate is administered.

Section 3. Selection Criteria.

The selection of a candidate to be a fire fighter shall be based primarily upon the candidate's suitability to serve as a fire fighter and including consideration of scores from the selection process. The Chief shall make the final hiring decision. The rule of three shall not apply. All testing and selection procedures shall be designed and intended to identify the most suitable applicants and to exclude those candidates who are deemed not likely to possess the characteristics and abilities to be successful in the performance of work required of a fire fighter. All candidates shall be required to pass an entry-level written test intended and designed to measure the candidate's suitability and ability to perform the duties of a fire fighter. The minimum passing grade on the examination is 70 percent, which will be implemented no later than the first entry-level fire fighter examination following the execution of this Agreement. The Association shall be afforded the opportunity to assign representatives as unpaid proctors during testing.

The candidate characteristics for which additional points shall be added to a passing test score and the point values for such characteristics are as follows:

5 points for military veterans with honorable discharge per DD 214.

Five (5) points is the maximum cumulative number of additional points which shall be added to a candidate's passing test score for any combination of such characteristics. In order for points to be given for Military service, the candidate must provide proof of an honorable discharge by presenting a DD 214 at the time of application or submitted a minimum of 24 hours prior to the entrance test.

In the event a candidate who is called to active military service prior to being hired or disqualified was in a stanine that other candidates were hired from, that candidate shall be added to the stanine currently being considered or the next stanine to be considered for the next class hired if the candidate reapplies (completes a new application) within one hundred eighty (180) days of being released from active duty, provided that the next stanine to be considered is created within 24 months from the date of the candidate's reapplication.

Section 4. Processing Candidates.

Candidates with passing test scores on the entry-level test will be placed on an eligibility list in the order of their overall eligibility scores (test score plus additional points). An eligibility list will be divided into stanines based on the eligibility scores of candidates who pass the entry-level test. All candidates within a stanine shall be considered to have an equivalent eligibility score. Candidates with eligibility scores that span two stanines will be placed in the higher stanine. Candidates may not be hired from an eligibility list that is created after an existing active eligibility list has been established until the existing list has been exhausted or has expired. All candidates within a stanine must be processed and either recommended for hire or rejected before candidates from a lower stanine may be considered. Candidates will be referred by the Human Resources Department to the Department by stanine. An eligibility list may be effective for either a maximum of twelve (12) months, or until a specified number of candidates for academy classes are selected from a list, whichever event occurs first. The conditions that will determine when an active list may be closed must be included on the announcement notifying candidates of the test. Any eligibility list created under this Article that is in effect at the time this Agreement expires, including the end of any "evergreen" provision, will remain in effect until the eligibility list expires, according to the terms under which it was created. This includes the last entry-level eligibility list that was created while the previous Collective Bargaining Agreement was in effect.

Section 5. Selection Process.

The Department will determine those candidates who are most suitable to be hired as fire fighters based on a structured and job-related selection process. The selection process will include testing for physical ability; personal characteristics linked to the performance of essential job functions, decision-making, communication skills, and interpersonal skills. The Department will utilize interview boards (e.g. review boards), polygraph examinations, drug screens, background reviews, and personal references to assess candidates as long as the methods have been reviewed by the Human Resources Department and found to be objective and job-related and applied consistently in processing candidates. Pass/fail scores, rating scales or point scores currently in use as of the date of ratification of this Agreement shall continue to be used for each selection method in the selection process. A candidate must complete and pass each selection method in the entry-level hiring process in order to continue in the process.

The point system currently in use as of the date of ratification of this Agreement for the Interview Board's personal history interview shall continue to be used for the selection process:

Candidates are rated in the following ten (10) categories:

1. Decision Making
2. Maturity
3. Initiative
4. Communication Skills
5. Interpersonal Skills
6. Attitude
7. Self-Discipline
8. Responsibility
9. Stability
10. Ethics

Each member of the Interview Board may score the candidate on a scale from zero (0) to ten (10). All scores by the Interview Board shall be within 3 points of one another per category. The total score per Interview Board member stands alone as long as the 3 point rule is met in each individual category. Candidates scoring 0-3 in any category are considered less suitable to be hired as fire fighters for that category. Candidates scoring 4-7 in any category are considered suitable to be hired as fire fighters for that category. Candidates scoring 8-10 in any category are considered more suitable to be hired as fire fighters for that category. The overall total for each interview board member shall equal the sum of all scores in each category. The total score may range from 0 to 100 per interview board member. Then all interview board members' scores shall be added together for the candidate's final score, which may range from 0-500. Any candidate scoring

below 300 points for a 5 member board, for their final score (240 points for a 4 member board, 180 points for a 3 member board) shall not be considered for hiring by the Fire Chief as they have been scored below the suitable for hiring range.

Nothing in this Article shall prevent the City, including the Interview Board, from complying with EEOC regulations or guidelines, nor shall this Article be interpreted to create a private right of action to an EEOC discrimination claim.

Any candidate needing a reasonable accommodation in order to complete a step in the process will be afforded an opportunity to request that accommodation from the Human Resources Director. The Human Resources Director or designee will grant or deny the request.

Any interview or review boards used in the selection process shall consist of one (1) member with one (1) alternate appointed by the Association and additional members (and their alternates) appointed by the Chief. Each additional member shall also have an alternate. Interview or review boards shall not have fewer than three (3) or more than five (5) members on each. Membership of the interview board will not change during a hiring period unless a member is unable to serve, in which case his or her alternate shall serve. If needed, any trained alternate may serve as an alternate for any original board member. In the case of incapacitation, termination or resignation of the primary or alternate member, one additional alternate may be added after receiving training. In order to serve, each board member must have prior interview board experience and shall have received Human Resources training prior to their appointment. Alternates may be appointed prior to obtaining the required human resources training. Observation of an actual interview board session (i.e., a full day of interviews) shall satisfy the interview board experience requirement.

Section 6. Hiring Process.

Upon completion of the selection process, a total final score, as described in Section 5 from the Interview Board will be calculated by the hiring process administrator for each candidate based on the rating or point standards established for the various selection methods. The hiring process administrator shall be appointed by the Chief. Candidates will be ordered by final score and grouped into batches of ten (10) based on the candidates' final score. In the event of a tie score, the tiebreak number drawn at the time of the entry-level test shall be used to rank candidates within a batch. The candidates will then be submitted to the Chief by batch (highest scoring batch, first) but without any associated scores or rankings. The Chief may consider signed, written information provided by any of the participants in the selection process as to any candidate when making a final decision to make a conditional offer of employment to a candidate. The Chief shall hire each candidate in a batch in order unless a valid reason exists to reject the candidate. The Chief must either hire or reject each candidate in a batch before the next batch can be presented to the Chief for consideration. As each candidate is hired, the order in which they are hired will be documented

and this order will be used to establish the final tie breaking criteria for future promotional tests. The hiring process administrator will evaluate the scores, written documentation, and justification of the Interview Board for passing over and selecting candidates. The hiring process administrator may elect to submit the cases which they believe involve inconsistencies in the application of hiring standards to the Civil Service Director or designee for review. The Civil Service Director or designee will review the case and may also review the scores and written documentation on any selected and passed-over candidates to insure consistency and fairness in the selection process and compliance with applicable law.

Those cases which the Civil Service Director or designee believes conflicts with applicable law or are deemed to be inconsistent in the application of hiring standards will be considered for reinstatement in the process after the Civil Service Director or designee confers with the Fire Chief. The Fire Chief will have the final authority for reinstatement or removal of a selected candidate based on fair and consistent objectives. Following this review, the Chief will complete the hiring process.

Section 7. Candidate Hold Over.

If an eligibility list expires or is closed prior to the next class, the Department may retain any candidate's name that was processed or being processed prior to the expiration of the eligibility list from the last stanine from which candidates were considered for hiring to be included in the next available class if such class begins within ninety (90) days of the expiration date. Processing is defined as the applicant having attended the first orientation meeting in the hiring process.

Section 8. Probationary Period and Leave Usage During Probationary Period.

a. For trainees and fire fighters who are still in their probation period on the effective date of this Agreement, their probationary period will be from date of initial hire until completion of Academy training, and one year after being commissioned as a Fort Worth fire fighter.

b. This paragraph, and paragraph (c), apply only to trainees and fire fighters whose initial date of hire is after the effective date of this Agreement. All new hires and rehires will serve a probationary period from the date of hire until completion of Academy training and successful completion of one hundred (100) shifts worked on an active service status Engine or Truck company, including quints, after being commissioned as a Fort Worth fire fighter. These shifts must be twenty-four (24) hours in length and occur on the fire fighter's regular duty days, while working an exchange of time day, or while working overtime shifts to fulfill staffing needs. Each shift will be documented and signed by a company officer on the evaluation forms provided by the Professional Development Coordinator in the Training section. It will be the probationary fire fighter's responsibility to notify their battalion chief each time they accumulate twenty-five (25) evaluation forms. The battalion chief will then arrange a meeting with the probationary fire fighter within ten (10) business days to review their signed forms. Any noted recommendations shall be forwarded through the chain-of-command for review to determine if any remedial training or

counseling is needed. Upon completion and review of the 100th shift, the shift commander will meet with the probationary fire fighter and the appropriate battalion chief(s) within ten (10) business days. Within five (5) business days after that meeting, the shift commander will make recommendations on the evaluation form and send the forms through the chain-of-command. If the probationary fire fighter's shift commander is not available to meet with the probationary fire fighter within ten (10) business days of being notified of the completion of their 100th signed form, then the Operations Assistant Chief will assign another shift commander to meet with the probationary fire fighter. The Fire Chief will have fifteen (15) business days from the date the shift commander meets with the probationary fire fighter after completion of the 100th shift to administer disciplinary action(s) that would prevent a probationary fire fighter's probationary period from being completed. With the mutual written agreement of the fire fighter and the applicable person in the chain of command, any of the above dates in this paragraph by which something must be done can be extended by a reasonable period of time.

c. Before, or within a reasonable time after, the completion of the fire fighter's 100th documented shift and the shift commander's recommendation set out in the preceding paragraph, the Fire Chief must take one of the following actions: (1) terminate the employment of the probationary fire fighter; (2) extend the fire fighter's probationary requirement to include completing no more than twenty (20) additional documented shifts; or (3) determine and notify the fire fighter that he or she has satisfactorily completed the probationary requirements.

d. During the probationary period, a trainee or probationary fire fighter may be terminated without civil service appeal rights. Probationary fire fighters shall not be eligible to test for promotion to the rank of Engineer prior to the completion of their probationary period. Upon completion of the probationary period, the fire fighter will have full civil service protection, except as modified or abridged by this Agreement.

e. In the event that a trainee or probationary fire fighter is unable to satisfactorily perform duties or training during the probationary period due to a temporary physical or mental impairment or condition, such as pregnancy, or temporary on-duty injury, the Department may either terminate the trainee or probationary fire fighter or suspend the probationary period (as of the number of shifts worked or time that has elapsed) and restart the probationary period when the person is capable of proceeding with the essential functions and duties of the job and/or training. The determination of whether to terminate the trainee or probationary fire fighter or suspend the probation should be made as part of the interactive process if the Americans with Disabilities act, as amended, is implicated.

f. Leave for probationary fire fighters will be based upon length of continuous service from date of hire. Probationary fire fighters will be eligible to use available vacation, personal, holiday, sick, and family illness leave, subject to supervisor approval and the conditions for which each type of leave is provided.

Section 9. Changes in Process.

The Commission may implement changes in the process or procedures set forth herein if the City Manager and the Executive Board of the Association approve a Memorandum of Agreement

setting forth the changes deemed necessary to address problems or needs that arise after the effective date of this Agreement.

Section 10. Preemption.

This Article shall preempt any contrary provisions set forth in TLGC 143.021 (c), 143.023 (b), 143.025 (b), (h), (i), 143.026, 143.027 and any local ordinances, executive orders, or rules adopted by the City or Commission, it being expressly agreed and specifically so provided under the authority of TLGC 174.005 and 174.006.

Section 11. Defense.

With regard to this Article only, the City shall defend all claims against the Association (including its executive board, if named) and will pay any and all claims finally adjudicated involving joint liability of the City and the Association, with counsel of the City's choice. This provision does not preclude the Association from retaining its own defense counsel, at its expense, and the City shall reasonably cooperate with counsel designated by the Association to participate.

ARTICLE 19

APPOINTED POSITIONS

Section 1. Assistant Chiefs.

Persons appointed by the Chief to the rank of Assistant Chief shall meet the requirements of TLGC 143.014(e) as of the effective date of this Agreement, and this Article.

Section 2. Deputy Chiefs.

The Fire Chief may have up to six (6) appointed Deputy Chiefs. Organizationally, the Deputy Chief classification will be immediately below the classification of Assistant Chief and immediately above the classification of Battalion Chief. The rank of Deputy Chief shall be filled by persons meeting the requirements of TLGC 143.014(e) as of the effective date of this Agreement, and this Article.

All promotions to any position in the classification of Deputy Chief shall be made by discretionary appointment of the Chief. The Chief will not be required to make promotions within any specific time. The Chief may, in his sole discretion, use any additional process or assessment procedure in making appointments to the deputy chief positions. Appointment to the rank of Deputy Chief shall be by mutual consent of the Chief and the appointee.

Section 3. Rights of Assistant Chiefs and Deputy Chiefs.

Any fire fighter appointed to the classification of Assistant Chief or Deputy Chief may be demoted to the same or equivalent classification the fire fighter held prior to appointment at the exclusive discretion of the Chief, and shall have no right to appeal such a demotion. Any Assistant Chief or Deputy Chief so demoted shall have no right to prior notice, a statement of charges, or to file a grievance or other complaint. Neither the Commission nor an Arbitrator shall have the jurisdiction, power, or authority to investigate or review such demotion or to alter the terms of such demotion.

Any fire fighter appointed to the classification of Deputy Chief shall be afforded the same protections as Assistant Chiefs in regard to TLGC 143.014 (g) and 143.014 (h).

Section 4. Deputy Chief and Assistant Chief Pay.

The base pay for the ranks of Deputy Chief and Assistant Chief shall not be controlled by TLGC Chapter 143 and specifically 143.041(b). The base pay for Assistant Chiefs and Deputy Chiefs shall be set by the Fire Chief within the salary range for each position. The minimums and maximums of the salary range for each appointed position will be increased by the same

percentage, and at the same time, as the across-the-board raises, if any, set out in Article 9. The salary range will not be increased at the beginning of, or during, any evergreen period, as set out in Article 34, Section 1. Such personnel shall be exempt from overtime compensation to the extent permitted by state and federal law.

Section 5. Preemption Provision.

This Article shall preempt any contrary provisions set forth in TLGC 143.014(b)(g) and (h), 143.021(b), 143.021(c), 143.034, 143.036, 143.037, 143.041 and 142.0015(b)-(e), and any local ordinances, executive orders, or rules adopted by the City or Commission, it being expressly agreed and specifically so provided under the authority of TLGC 174.005 and 174.006.

ARTICLE 20

SECONDARY EMPLOYMENT

Section 1. On-Duty.

Fire fighters shall not engage in secondary employment while on-duty.

Section 2. Conflict of Interest.

Fire fighters shall not engage in any secondary employment that constitutes a conflict of interest with the Department or the City, or where the secondary employment interferes with the ability of the fire fighter to proficiently perform all assigned duties, tasks, and training requirements.

Section 3. Good Conduct Required.

Fire fighters shall at all times be governed by the ordinary and reasonable rules of good conduct and shall not commit any act tending to bring reproach or discredit on themselves, the Department, or the City.

Section 4. Registration.

The Chief retains his or her authority to implement a registration system for off-duty employment in accordance with the provisions of this Article.

Section 5. Limitations.

This Article shall not be construed to authorize unlimited, unilateral or unconditional secondary employment while on duty.

ARTICLE 21

DISCIPLINARY PROCEDURES

Section 1. Compliance with TLGC 143.

All disciplinary action shall comply with the applicable provisions of Chapter 143 of the TLGC as of the date of ratification of this Agreement. This Article provides options in addition to those included in Chapter 143.

Section 2. Suspension Options.

A fire fighter who is suspended from duty for up to a maximum of ten (10) calendar days may submit a request to the Chief to forfeit either his or her accumulated paid vacation or holiday leave in lieu of the suspension. The fire fighter must make the request to use paid leave in lieu of suspension to the Chief within 24 hours of receipt of notice of the disciplinary action. The request may be granted at the discretion of the Chief. If a fire fighter is permitted by the Chief to forfeit his or her paid leave in lieu of all or part of a disciplinary suspension, the disciplinary action is not appealable. Forfeited time shall not apply to annual leave use requirements. Under an agreement reached under Section 143.052(g) of the TLGC, the Chief and the fire fighter may agree to forfeit accrued leave for all or part of a disciplinary suspension through a reduction in the fire fighter's accrued leave.

A fire fighter cannot make the request to use paid leave in lieu of suspension, as referred to in the preceding paragraph, if the fire fighter is suspended from duty for an arrest for driving while intoxicated or boating while intoxicated.

Section 3. Appeals.

Any fire fighter who chooses to appeal a disciplinary suspension as provided under Chapter 143 of the TLGC may be charged with the suspension days before the appeal is resolved.

Section 4. Formal Administrative Investigation.

In the event of a Formal Administrative Investigation of alleged misconduct by a fire fighter that could result in disciplinary action against that person, the fire fighter shall be notified in writing that he or she is the subject of a Formal Administrative Investigation and the allegations against the fire fighter at least thirty-six (36) hours prior to the subject fire fighter's initial interrogation by the Chief or officers assigned to the investigation. The fire fighter who is the subject of a Formal Administrative Investigation shall be entitled to have a representative present at his or her interrogation or any subsequent meeting with the Chief or designee.

Section 5. Preliminary Investigations.

Meetings, interviews, questions and/or discussions, including those that could possibly lead to a Formal Administrative Investigation, conducted by officers in the fire fighter's chain of command, are considered as Preliminary or fact finding Investigations, and may be initiated at any time, and without notice or requirement for representation. This does not prohibit the officers in the fire fighter's chain of command from allowing the affected fire fighter representation if so requested.

Section 6. Felony Convictions.

Conviction of a felony shall terminate the employment of a fire fighter without right of administrative appeal.

Section 7. Misdemeanors.

A fire fighter shall notify the Chief or designee through the chain of command within 48 hours of the fire fighter's arrest for a Class A or Class B misdemeanor or felony; official charge for a Class A or Class B misdemeanor; felony indictment; and the conviction, acquittal, or dismissal related thereto.

Section 8. Disciplinary Suspensions.

Before the Fire Chief makes the final determination of terms of a fire fighter's disciplinary suspension, the Chief will offer the Association an opportunity to meet with the Chief. This meeting will be for informational purposes only and the decision regarding the disciplinary suspension is in the Chief's sole discretion.

The Chief or designee shall not be required to deliver in person a written statement of suspension to the fire fighter being suspended. The written statement of suspension shall be deemed to have been delivered to the fire fighter when the written statement of suspension (1) is hand-delivered to the suspended fire fighter by the Chief or designee; or (2) is delivered to the suspended fire fighter's attorney with signed receipt. If the City attempts in good faith to deliver the written statement as provided herein, but such attempts are unsuccessful, the written statement may be mailed by certified mail to the last known address of the suspended fire fighter. Service is complete upon mailing, and the suspension shall be automatically appealed consistent with Chapter 143 of the TLGC.

Section 9. Diversion.

In the event that a fire fighter's criminal case is successfully admitted into a diversion program, the Fire Chief may cease further disciplinary action against the fire fighter for conduct related to the conduct that was the basis of the underlying criminal charge that led to the admission into the diversion program. If the fire fighter successfully completes the diversion program the Fire Chief may rescind any related discipline previously administered and restore the fire fighter back to his/her position prior to any related discipline received including but not limited to all back pay, allowances, and emoluments of that office.

Section 10. Temporary Suspension and Back Pay.

If a fire fighter is temporarily suspended under TLGC 143.056(a) because of an indictment or misdemeanor complaint and the fire fighter later pleads guilty, no contest, or receives deferred adjudication, or deferred disposition for a felony or misdemeanor that is related to the acts that formed the basis of the indictment or misdemeanor complaint for which the fire fighter was temporarily suspended, the fire fighter will not be eligible to appeal to the Civil Service Commission for recovery of any back pay or benefits. This section does not apply to a fire fighter who successfully completes a diversion program, as set out in Section 9 of the Article. This section preempts TLGC 143.056(e).

ARTICLE 22 GRIEVANCES

Section 1. Grievances.

A grievance is defined as any dispute, claim, or complaint involving the interpretation, application or alleged violation of any provision of this Agreement. Except as may be otherwise provided in this Agreement, all disciplinary action shall be in compliance with the applicable provisions of Chapter 143 of the TLGC, as of the date of ratification of this Agreement, and is not subject to the terms under this Article. The Association, or any bargaining unit member may file a grievance under the terms of this Agreement. Each grievance shall be submitted on a form agreed to by the parties and must include (1) a brief statement of the grievance and the facts or events on which it is based; (2) the section(s) of the contract alleged to have been violated; (3) the remedy or adjustment sought; (4) the steps taken by the grievant to resolve the issue; (5) for maintenance of standards or past practice grievances, the specific right or practice that is the basis of the complaint; and (6) the bargaining unit member's signature or, if filed by the Association, the signature of the Grievance Committee Chairman or local Association President.

Section 2. Procedure.

Notice

Notice or delivery of anything in writing required under this Article shall be accomplished by confirmed receipt (or Read Receipt) email, to the Chief, or designee, or the Association President, as applicable.

Step 1

A fire fighter who is aggrieved must file a grievance with an Association Grievance Committee member within thirty (30) calendar days of the date upon which the fire fighter knew of or should have known of the facts or events giving rise to the grievance. A copy of the notice of receipt of the grievance shall be forwarded to the Chief by the Association Grievance Committee within fifteen (15) calendar days of receipt of the grievance. The Grievance Committee shall within fifteen (15) calendar days of receipt of the grievance determine if a grievance exists. If the grievance is denied by the Committee, a member of the Committee shall notify the grievant within fifteen (15) calendar days of the day of the denial. The grievant may appeal in writing to the Executive Board of the Association within fifteen (15) calendar days of notification of denial of the grievance. The Executive Board shall have fifteen (15) calendar days to make final determination of the appeal. If the Association determines that no grievance exists, the Grievance Committee Chair shall notify the Chief or designee in writing that no further proceedings will be

necessary. If the Association determines that the grievance is valid, it shall process the grievance on behalf of the fire fighter(s) by forwarding the written grievance to Step 2 of this procedure.

Step 2

Any grievance found to be valid by the Association shall be submitted to the Chief or the designee within fifteen (15) calendar days of the Step 1 ruling. After receipt of the grievance, the Chief or designee shall: within fifteen (15) calendar days of receipt of the grievance submit his or her response in writing to the Association President.

Step 3

If the grievance is not resolved at Step 2, the Association shall have fifteen (15) calendar days to submit the grievance to the City Manager, or designee. After receipt of the grievance, the City Manager, or designee, shall, within fifteen (15) calendar days of receipt of the grievance submit his or her response in writing to the Association President.

Step 4

If the grievance is not resolved at Step 3, the Association shall have fifteen (15) calendar days from receipt of the Step 3 decision to submit the matter to arbitration. The arbitration procedure will be implemented by the Association notifying the Chief in writing of their intent to submit the grievance to arbitration.

Step 5

If a grievance is submitted to arbitration, the City and the Association may, within fifteen (15) calendar days of such request, mutually agree to a neutral arbitrator. If the parties are unable to agree on such an appointment, the City and Association shall, within fifteen (15) calendar days, jointly request a list of seven (7) arbitrators from the American Arbitration Association or the Federal Mediation and Conciliation Service. Within fifteen (15) calendar days following receipt of the list of arbitrators, the parties shall select an arbitrator by each party in turn striking one name from the list until only one (1) name remains. The remaining individual on the list shall serve as the arbitrator. The arbitrator so selected shall, through the agency selected, be promptly notified of his or her selection and the parties in agreement with the arbitrator shall select a time, place and date for the hearing of the grievance.

- a. Within thirty (30) calendar days after the conclusion of the hearing, the arbitrator shall issue a written opinion and ruling with respect to the issues presented, a copy of which shall be mailed or delivered to the Association and the City.
- b. With respect to the application, interpretation and enforcement of the provisions of this Agreement the decision of the arbitrator shall be final and binding on the parties of this Agreement.

- c. The arbitrator's authority shall be limited to the interpretation and application of the terms of this Agreement and/or any supplement thereto. The arbitrator shall have no jurisdiction or authority to modify or to establish new provisions as to the present Agreement, or to arbitrate away, in whole or in part, the provisions or amendments thereof.
- d. The cost of the impartial arbitrator shall be borne by the losing party. In the event of a composite decision, the arbitrator shall determine the portion of such cost to be borne by each party. If a transcript of the proceedings is requested, then the party so requesting shall pay for such transcript, unless otherwise agreed to by the parties.
- e. Each party shall be responsible for the cost of the attendance of its witnesses at the contract grievance hearing.
- f. If the final date of any response and/or filing period falls upon a City Holiday (observed date), Saturday or Sunday, then the due date will fall on the next business day.

Section 3. Time Limits.

All time limits set forth in this Article may be extended by mutual consent and in writing, but if not so extended they must be strictly observed. In the event the Association fails to meet the time limits at any step of the procedure the grievance shall be considered resolved and no further action shall be required. Failure by the City to meet the time limits at any step shall be considered a denial of the grievance and shall automatically allow the grievance to proceed to the next step.

Section 4. Election of Remedies.

It is specifically and expressly understood that filing a grievance under this Article that has as its last step final and binding arbitration constitutes an election of remedies and any appeal of an arbitrator's decision in this procedure shall be strictly and solely limited to the grounds that the arbitrator exceeded their authority and jurisdiction as provided under this Agreement; that the decision of the arbitrator was procured by fraud or collusion or that the arbitrator's decision is based upon a clear and manifest error of law.

Section 5. Costs.

Each party shall be responsible for the costs of the attendance of its own witnesses at a contract grievance hearing. Nothing in this Agreement shall prevent the Association from charging non-

members reasonable fees and expenses for representation, in accordance with its by-laws and other applicable law.

ARTICLE 23

PERSONNEL FILE

A fire fighter, with or without his or her designated representative, shall be entitled to review and copy the contents of his or her department personnel folder, upon request, during normal business hours. In the event an investigation is currently in progress, materials pertaining to that investigation shall not be available until the investigation is completed. This does not authorize a fire fighter to review or copy materials deemed confidential by TLGC Section 143.089(g), provided however, that if any such material from prior complaints or investigations is considered by the Chief, either as to the truth of current allegations, or the degree of punishment, such materials shall be available for review under this Article. A fire fighter must schedule a time at least 36 hours in advance with the Assistant Chief or Deputy Chief over the Office of Professional Standards or a designee, and any copying of the department personnel folder shall be onsite and at the fire fighter's expense.

ARTICLE 24
MISCELLANEOUS

Section 1. Fire Station Air Conditioning Systems.

Control of station heating, ventilation and air conditioning systems will be at the discretion of the on duty station officer subject to management and oversight by the Chief or designee.

Section 2. Fire Department Committees.

The Association may be afforded the opportunity to assign a voting representative to committees established and assembled by the Department at the discretion of the Fire Chief.

ARTICLE 25

CHAPLAIN PROGRAM

Section 1. Appointment as Chaplain.

A minimum of one fire fighter shall be appointed by the Chief for duties as the Department Chaplain and shall direct any other members of the Chaplain's team. Any additional person(s) appointed as a part of the Department Chaplain's team can be (1) a fire fighter; (2) a City employee who is not a fire fighter; or (3) a non-City employee. Individuals appointed as part of the Chaplain's team provide guidance and counseling for job related problems, including counseling with immediate family members, and will assist where possible when fire personnel are injured, ill, or deceased. The Chaplain, and the members of their team, will perform other related duties as requested by the Chief.

Section 2. Vehicle Usage.

Individuals appointed as Chaplain shall be provided a City vehicle for their use. If the Chaplain must use his or her personal vehicle they shall be reimbursed for mileage at the current City mandated rate.

ARTICLE 26

HEALTH AND SAFETY

Section 1. General.

The City and the Association agree that qualified and responsible fire protection and safety, including rescue and first responder emergency medical service is the primary purpose of the Department. In order to provide such protection and service to the community, the City and the Association agree to maintain the highest reasonable standards of safety and health in the Department, and the Parties intend to eliminate, as much as possible, injuries, illness and death in the fire service. This Article does not modify or limit the management rights of the Department or Chief.

Interpretation of this Article shall be subject to the Article 22 Grievance process only in so far as up to Step 3, which shall be modified by substituting the term “mediation” for “arbitration.” The same changes shall apply to Step 4; however, all references to arbitration services, as well as subparts (a)-(f), shall not apply.

Section 2. Annual Fire Department Physicals.

Written complaints received by the Association concerning Physicians conducting yearly physical exams shall be forwarded to the Human Resources Benefits office to initiate a formal complaint and investigation against the Physician.

During each calendar year this Agreement is in effect, every fire fighter must obtain a physical examination. The physical examination must be performed by a medical provider affiliated with the Department’s health assessment provider, and the cost of such physical examination will be paid by the City. The components of the physical examination will be determined by the City and will include, at least, the minimum guidelines set out in the National Fire Protection Association (NFPA) publication NFPA 1582, as amended.

Section 3. City of Fort Worth Wellness Program.

Fire fighters are not eligible to receive any monetary or leave benefits from participation in the City of Fort Worth’s Wellness Program.

Section 4. Physical Fitness Equipment.

The City shall provide weight training and cardiovascular training equipment and will make reasonable efforts to maintain them in working order.

Fire fighters shall be allowed to use the physical fitness equipment at the fire department's training center while off-duty, during regular business hours, subject to the needs of the training center, including, but not limited to, the use of such equipment by fire fighter trainees in the training academy.

Section 5. Personal Protective Equipment.

The Department shall issue and maintain a set of bunker gear for each fire fighter. Prior to a change in vendor for Personal Protective Equipment (PPE) a wear test shall be conducted by fire fighters in Operations. The Department shall issue upon request to all assigned 56-hour operations personnel an additional set of gloves and a hood. Nothing in this section shall be construed to require the City to provide an additional set of gloves or a hood for any fire fighter who has two or more sets of either.

Section 6. Uniform and Personal Equipment Maintenance Allowance.

In the first regular paycheck following the first full pay period of each calendar year, each active fire fighter employed by the City on the date of that paycheck shall receive a maintenance allowance of \$250 each calendar year.

Section 7. Retention of Helmet, Badge & Weapon Upon Retirement.

A fire fighter who retires in good standing from active duty shall retain their fire helmet and badge upon the fire fighter's request. The term "in good standing" in this section does not include a fire fighter who, at the time of retirement, was indefinitely suspended or under a temporary suspension. The spouse or children of a fire fighter who dies prior to retirement shall be allowed to request the right to retain the helmet and badge of their deceased fire fighter family member.

A fire fighter in the Arson & Bomb Unit who retires in good standing from active duty may purchase their firearm upon retirement, and the purchase price will be no more than the market price of a used firearm of that type as of the date of retirement. Texas Government Code Sections 614.0505 -.054 will apply to this paragraph.

ARTICLE 27

PROMOTIONAL EXAMINATIONS AND APPEALS

Section 1. Release of Promotional Exams' Study Materials and Test Dates.

The posted study materials list for each rank shall include the corresponding promotional examination date.

Section 2. Promotional Examination.

By 5PM the next business day after the examination, the City shall publish the raw scores with three (3) columns for each corresponding name. The first column will contain the individual's raw score on the test. A second column will contain the individual's accrued seniority points as of the test date. Finally, a third column will contain the total of each individual's raw score plus the seniority points. All lists shall be sorted according to the appropriate tie breakers. The same columns will be included on the eligibility list from the examination. The failure of the City to meet the time deadline set out in this section will not be grounds to invalidate the eligibility list or results of that examination, nor to invalidate any promotional decision based on the resulting eligibility list from that examination.

Any eligibility list created under this Article that is in effect at the time this Agreement expires, including the end of any "evergreen" provision, will remain in effect until the eligibility list expires, according to the terms under which it was created.

Section 3. Procedures and Authority.

On request, a promotional candidate will be allowed to review his or her promotional test and the correct answers, source material and examination grading. The test may be reviewed only once, except as described below in Section 4. The review and appeal period shall begin the second business day after the date of the exam. All appeals must be filed no later than 6 business days after the date of the exam. A candidate may appeal a test item by stating in writing why the graded correct answer is wrong or another answer is clearly more correct than the graded correct answer. A candidate's test item appeal will be submitted by the Human Resources Department without the names of the appellants, to a board of three fire fighters, two appointed by the Chief and one appointed by the Association ("Review Board"). This Review Board will review each appealed question and make a written recommendation as to the validity of the appeal and appropriate remedy. If the Review Board and Human Resources Department are in agreement as to the validity of the appeal and appropriate remedy, their decision shall be final and binding. The Commission shall review all written recommendations and rule on all appeals and remedies in which the Review Board and the Human Resources Department are in disagreement. The Commission will be

provided with the candidate's appeal, the recommendation of the Review Board and the justification for the correct answer by the Civil Service Director or designee. The Commission will rule on the validity of the appeal based on the documentation provided without oral argument. All test items will be graded with either one best answer correct, multiple answers correct or all answers graded correct. The Commission's decision on test item appeals on which they rule shall be final.

Section 4. Exam Answer Key Error Procedures.

If the keyed-as-correct answer to any question in a promotional exam is determined by the test preparer or the City to be incorrectly keyed-as-correct, any test-taker who gave an answer to the question that was something other than the answer that was intended to be the correct answer will be given a 5-business-day window to review only that question at issue and file an appeal regarding only that question. For example, if the answer key for an exam stated that the correct answer to Question 1 was "A" but the answer key should have stated that the correct answer to Question 1 was "B," any person who answered the question with an answer other than "B" will be allowed 5 business days to review that question and file an appeal. No other additional appeal regarding this examination will be allowed, and no untimely appeal will be considered. Any appeal filed within this time period will be reviewed by the Review Board and Human Resources and, if the Review Board and HR agree that the appeal is or is not valid, based on the procedure in this Article, there will be no further appeal from that decision. If the Review Board and HR disagree, then the appeal will be decided by the Civil Service Commission. In the event of an incorrectly keyed question, Human Resources will promptly notify all test-takers of the issue and notify those individuals of the beginning and ending dates for the 5-business-day time period to review the question and file an appeal.

Section 5. Reopener.

During the term of this Agreement, the City may reopen Collective Bargaining negotiations with the Association to implement a promotional process for the Battalion Chief Rank that differs from that set out in TLGC Chapter 143 and this Agreement. The promotion process shall only be comprised of objective evaluation components and shall not include a traditional assessment center. This promotional process shall include a multiple choice examination of at least 100 questions and no more than 200 questions.

Any additional objective evaluation component(s) may include one or more of the following:

1. Open book component
2. Tactical exercise with an objective task-oriented checklist limited to Yes or No checkboxes

If Collective Bargaining negotiations are reopened as provided herein, they will be limited to discussions surrounding that topic, and will also include discussions of modifications to applicable review and appeal procedures for promotional examinations set out in this Article.

Such reopened Collective Bargaining negotiations must be completed within 60 days after the face-to-face negotiations begin, unless the Association and the City agree, in writing, to extend the negotiations. Any Agreement between the Association and the City that results from the reopened Collective Bargaining negotiations, will not be effective unless and until it is approved by the City and the Association pursuant to the requirements of Article 32 of this Agreement.

Section 6. Preemption Provision.

This Article shall preempt any contrary provisions set forth in TLGC Chapter 143, including TLGC 143.021(c), 143.029, 143.032, 143.034, 143.036, and 143.037, 143.041 and 142.0015(b)-(e), and any local ordinances, executive orders, or rules adopted by the City or Commission, it being expressly agreed and specifically so provided under the authority of TLGC 174.005 and 174.006.

ARTICLE 28

SICK LEAVE AND FAMILY LEAVE

Section 1. Restrictions.

It is expressly understood and agreed that sick leave and family leave shall be utilized only in cases of bona fide incapacitation, illness or injury of the fire fighter or eligible family member. There is no right to use sick leave and family leave for personal convenience or extra time off, or to burn excess leave prior to retirement. No fire fighter shall engage in any outside employment, trade or occupation while off work when utilizing sick leave or family leave.

A fire fighter is not eligible to work voluntary overtime until 30-days after using more than the following amounts of leave time:

- **For 56 hour personnel:**

Individuals using more than 96 hours of combined sick leave and/or family leave during the preceding 180-day period.

- **For 40 hour personnel:**

Individuals using more than 60 hours of combined sick leave and/or family leave during the preceding 180-day period.

A fire fighter may appeal this exclusion from being eligible to work voluntary overtime in writing to their respective chain of command for cases where the leave usage can be justified. Such appeal must be filed after the fire fighter has used 72 or more hours (52 or more hours for 40-hour personnel) but before the expiration of the 30-day overtime exclusion period. The Chief or designee will decide the appeal within seven (7) business days, and there is no further appeal from that decision. A fire fighter shall not be entitled to back pay for any overtime opportunities missed if the appeal is approved.

The department retains the right to alter assignments and work schedules including for the use of excessive unscheduled leave.

Section 2. Probationary Fire Fighter Sick Leave and Family Leave Usage.

Probationary fire fighters will be eligible to use available sick leave, or family leave, subject to supervisor approval and the conditions for which each type of leave is provided, as set out in Article 18, Section 8.

Section 3. Disability Accommodation.

The parties agree that, in the event that a fire fighter with a documented disability is adversely affected by the requirements stated in Section 1 of this Article concerning restrictions from voluntary overtime, beyond that experienced by fire fighters without a documented disability, the City agrees to engage in an interactive process with such fire fighter with a disability to determine what, if any, reasonable accommodation is needed to make the applicable requirements and consequences for sick leave usage no more burdensome on a fire fighter with a disability than they are on a fire fighter without a disability

Section 4. Protection of Medical Information.

The medical records of all Bargaining Unit members as described in this Article shall be kept in confidence and shall be maintained in compliance with the City of Fort Worth Administrative Regulation D-10, Protection of Medical Information.

Section 5. Family Medical Leave Act.

Leave use which qualifies under the Family Medical Leave Act (FMLA) must be supported by an approved medical certification and appropriate supporting information as required by the City's FMLA Policy. Employees have fifteen (15) calendar days to provide the approved medical certification for medical leave which qualifies under the City's FMLA Policy.

Section 6. Reopener Provision For Changes in Leave Structure.

In the event that the City changes its current leave structure as set forth herein during the term of this Agreement, the City shall be entitled to reopen Collective Bargaining negotiations with the Association to discuss any proposed changes. The parties agree that those negotiations may result in changes in some leave benefits in order to provide similar leave benefits for all City employees. If Collective Bargaining negotiations are reopened as provided herein, they will be limited to such differences in the current leave structure and the proposed new leave structure that the City identifies, in writing, 30 days before the beginning of the reopened negotiations. Such reopened Collective Bargaining negotiations must be completed within 60 days after the face-to-face negotiations begin, unless the Association and the City agree, in writing, to extend the negotiations.

Any Agreement between the Association and the City that results from the reopened Collective Bargaining negotiations, will not be effective unless and until it is approved by the City and the Association pursuant to the requirements of Article 32 of this Agreement.

ARTICLE 29
FIRE FIGHTER APPRAISALS

Section 1. Evaluation of Competencies.

Fire fighters shall be graded semi-annually on each of the applicable competencies with no commentary required. However, Battalion Chiefs and above are required to prepare appropriate commentary to develop the supervisory and management skills of their team members.

Section 2. Job Objectives.

The Job Objectives section of the City evaluation shall not be used for fire fighters.

ARTICLE 30 INCENTIVE PAYS

Section 1. Education.

1.1 Fire fighters who have completed their initial probation period and have obtained an Associates, Bachelors, Masters, or Ph.D. degree shall receive educational incentive pay. Education pay shall be authorized for successful completion of one of the aforementioned degrees at an accredited college or university. An accredited college or university is an educational institution approved by the Southern Association of Schools or its regional counterparts, or a technical training school or college approved by the Accrediting Commission of Career Schools or Colleges of Technology. An eligible fire fighter must comply with the City's Human Resources' administrative rules and the Personnel Rules and Regulations regarding the payment of this Education Incentive Pay.

1.2 Educational incentive pay shall be paid biweekly according to the following rates:

- A. Associates Degree – One and one-half percent (1.50%) of Step 11 fire fighter biweekly pay.
- B. Bachelors Degree – Two and one-half percent (2.50%) of Step 11 fire fighter biweekly pay.
- C. Masters Degree – Three percent (3.00%) of Step 11 fire fighter biweekly pay.
- D. Ph.D. – Three and one-half percent (3.50%) of Step 11 fire fighter biweekly pay.

Section 2. Bilingual Skills Pay.

2.1 Fire fighters that successfully pass the language proficiency test, administered by Human resources, shall receive bilingual skills pay.

2.2 Bilingual skills pay shall be paid biweekly according to the following rates:

- A. Verbal proficiency – One and six-tenths percent (1.60%) of Step 11 fire fighter biweekly pay; or
- B. Verbal and written proficiency – two percent (2.00%) of Step 11 fire fighter biweekly pay.

Section 3. EMT Certification.

3.1 Fire fighters holding certification for successful completion of a Texas state approved or National Registry approved EMS course shall receive certification pay.

3.2 Certification pay shall be paid biweekly according to the following rates:

- A. EMT Basic – One and one-quarter percent (1.25%) of Step 11 fire fighter biweekly pay.
- B. Advanced EMT – One and three quarter percent (1.75%) of Step 11 fire fighter biweekly pay.

- C. EMT Paramedic or Licensed Paramedic - Four percent (4.00%) of Step 11 fire fighter biweekly pay unless the fire fighter has opted out of the Paramedic Program, with the written approval of the Fire Chief. To be eligible, the fire fighter must be credentialed by the Office of the Medical Director.

Section 4. TCFP Certification.

4.1 Fire fighters holding certification for successful completion of an approved Texas Commission on Fire Protection (TCFP) course shall receive certification pay.

4.2 Certification pay shall be paid biweekly according to the following rates:

- A. TCFP Basic Certification – Zero percent (0.00%) of Step 11 fire fighter biweekly pay.
- B. TCFP Intermediate Certification – One percent (1.00%) of Step 11 fire fighter biweekly pay.
- C. TCFP Advanced Certification – One and one-half percent (1.50%) of Step 11 fire fighter biweekly pay.
- D. TCFP Master Certification – Two percent (2.00%) of Step 11 fire fighter biweekly pay.

Section 5. Specialized Duty Assignments.

Fire fighters assigned to the specialized duties listed below shall be paid biweekly according to the following rates:

Paramedics credentialed by the Office of the Medical Director and assigned for use in a position requiring paramedic staffing as described below: The Chief may authorize this additional pay only for paramedics being used in the Community Paramedic Program that meet all of the following criteria: 1) Hold the states certification or license in Texas; 2) Complete the training and job performance requirements to be used in the approved position; 3) Be assigned in an approved paramedic position where paramedic skills are required; and 4) Maintains the training and job performance requirements throughout the time the additional pay is provided.	Eight percent (8.00%) of Step 11 fire fighter biweekly pay. (In addition to certification pay in Section 3.) A credentialed paramedic who is not eligible for this additional pay but who works in place of a credentialed paramedic who is eligible for this additional pay will be paid a pro rata amount of this additional pay, based on the number of hours that person works in place of the eligible credentialed paramedic. The additional pay will be calculated as follows: the annual salary of a Step 11 fire fighter divided by 2912, multiplied by 8% = the hourly rate for this pro rata pay.
Executive Assistant Chief	Seven and nine-tenths percent (7.90%) of Step 11 fire fighter biweekly pay.

Program Chief	Five and one-half percent (5.50%) of Step 11 fire fighter biweekly pay.
- Program Coordinator - Section Manager	Three and 15 one-hundredths percent (3.15%) of Step 11 fire fighter biweekly pay.
- Fire Inspector - Fire Investigator - Public Educator - Hazardous Materials Instructor - Aircraft Rescue Fire Fighting Instructor - Specialty Instructor - Swift Water / Underwater Instructor - Technical Rescue Instructor - Training Academy Instructor - Wildland Instructor	Two and eight-tenths percent (2.80%) of Step 11 fire fighter biweekly pay.
- Hazardous Device (Bomb) Technician - Hazardous Materials Technician-Fire Prevention - Hazardous Materials Responder - Aircraft Rescue Fire Fighting Responder - Hazardous Materials Responder – Battalion Chief - Hazardous Materials Responder – Deputy Chief - Swift Water / Underwater Responder - Technical Rescue Responder - Wildland Responder - PIO Responder - Professional Standards Investigator - Working Agreement Secretary/Records Manager -Air Shop SCBA Technician	One and six-tenths percent (1.6%) of Step 11 fire fighter biweekly pay.

Section 6. Limitations on Incentive Pays.

7.1 If eligible, a fire fighter may receive more than one (1) of the Incentive Pays set out in this Article, according to the following guidelines:

7.2

- A. The higher dollar amount of either: One (1) Education pay, based on the highest level of degree received; or One (1) TCFP certification pay based on highest level of certification obtained;
- B. Either bilingual skills pay (1. Verbal; or 2. Verbal and Written);
- C. One (1) EMT certification pay based on highest level of certification obtained; and
- D. Up to three (3) Specialized Duty Assignment pays.

Section 7. Effect of ATB Raises.

The parties to this Agreement understand that the effect of basing the Incentive Pays set out in this Article on a percentage of Step 11 fire fighter pay, as set out in Appendix A, means that as across-the-board (“ATB”) raises take effect, the Incentive Pays will increase a corresponding amount. References in this Article to percentages of “Step 11 fire fighter monthly pay” shall mean the amount set out in the salary schedule attached to this Agreement as Appendix A for the applicable fiscal year, or evergreen year.

Section 8: Qualifications and Eligibility for Incentive Pays.

The additional pays for Education, Bilingual Skills, EMT Certification, TCFP Certification, and Specialized Duty Assignments, set out in this Article are referred to collectively as “Incentive Pays.” These Incentive Pays will be effective on July 1, 2019 and will be based on the salary schedule that is attached to this Agreement as Appendix A. The qualifications and eligibility for the Incentive Pays set out in this Article will be contained in one or more departmental Standard Operation Procedures (“SOPs”) and will be considered to be written Department policies concerning operational issues that can be amended by the procedure set out in the first two sentences of Article 5, Section 2 of this Agreement. The amounts of such Incentive Pays will not be stated in the applicable SOPs.

Section 9. Training for Specialized Duty Assignment Pays.

In the case of Specialized Duty Assignment pays, the Fire Chief can extend the 180-day licensing or certification requirement in any Assignment Pay SOP if the Department has not made the necessary training available for the certification or license needed to receive the applicable assignment pay, or if there are any other delays in obtaining the designated requirements that the Fire Chief determines are not the fire fighter’s fault. If the Fire Chief does not extend the 180-day licensing or certification requirement, the Fire Chief can stop the fire fighter’s assignment pay until the training or licensing is completed.

Section 10. New Incentive Pays.

The Fire Chief can add new Specialized Duty Assignments that will receive Incentive Pay, and can set the amount of such pay. The qualifications and eligibility for such new Specialized Duty Assignment pays will be contained in one or more departmental Standard Operating Procedures (“SOPs”), according to the requirements of Section 8 of this Article.

Section 11. Preemption.

As authorized by TLGC 174.005 and 174.006(a), this Article shall preempt and prevail over any conflicting state or local civil service provisions including those set forth in TLGC 143.042(c).

ARTICLE 31

NOTICE

Except as otherwise provided herein, any notice, demand, request or other communication hereunder given or made by either Party to the other shall be in writing and shall be either hand delivered (with written receipt obtained) or deposited in the United States mail, postage prepaid, certified mail, return receipt requested, addressed to the Parties hereto at the respective addresses set out below, or at such other address as they may provide by written notice to the other Party. If mailed, a written attachment of the document shall be e-mailed via the City e-mail system to either the Chief or the Association President.

- A. If to City:
City Manager
City of Fort Worth
200 Texas Street
Fort Worth, TX 76102

- B. If to Association:
President
Fort Worth Professional Firefighters Association - Local 440
3855 Tulsa Way
Fort Worth, Texas 76107

ARTICLE 32
SUCCESSORS AND ASSIGNS

This Agreement shall be binding upon the successors and assignees of the parties hereto during the term of this Agreement and no provisions, terms or obligations herein contained shall be affected, modified, altered or changed in any respect whatsoever by any change of any kind in the City Council, management or Charter of the City, or by any change of any kind in the Executive Board, management or Constitution and By-Laws of the Association.

ARTICLE 33

SAVINGS CLAUSE & AMENDMENTS

Section 1. Savings Clause.

Should any provision of this Agreement be found to be inoperative, void or invalid by a court of competent jurisdiction, all other provisions of this Agreement shall remain in full force and effect for the duration of this Agreement, it being the intention of the parties that no portion of this Agreement or provision herein shall become inoperative or fail by reason of the invalidity of any other portion or provision. Such invalidated provision(s) shall be the subject of immediate negotiations between the parties in order to attempt to negotiate a substitute provision. This Article does not extend the City's statutory obligation to negotiate.

Section 2. Amendments.

Either party may propose an amendment to this Agreement at any time during the duration of the Agreement, and both parties agree to meet and confer on the proposed amendment. The Agreement may be amended by mutual agreement of the parties via either reopening the Agreement or via an attached Memorandum of Understanding, after ratification and City Council approval.

Section 3. Memorandum of Understanding.

The parties may accomplish a clarification or interpretation of this Agreement by a Memorandum of Understanding approved by the Association's Executive Board, the City Manager, and signed by the authorized representatives.

ARTICLE 34 DURATION AND TERMINATION

Section 1. Term of Agreement.

A. This Agreement shall be effective as of October 26, 2022. It shall remain in full force and effect until the 30th day of September, 2026, or until such time as it is superseded by a new Agreement between the parties, whichever occurs later; provided however, that in no event shall any part of this Agreement continue in effect after September 30, 2027. Only specific provisions which are cited in this Agreement are not subject to this evergreen provision

B. The provisions of this Agreement do not apply to any fire fighter who separates from City employment before the effective date of this Agreement or before the effective date of any specific provisions hereof.

Section 2. Funding Obligations.

The City presently intends to continue this Agreement each fiscal year through its term, to pay all payments due, and to fully and promptly perform all of the obligations of the City under this Agreement. All obligations of the City shall be paid only out of annual fiscal year revenues and funds lawfully available and legally unrestricted therefore and appropriated for such purpose by the City Council, in compliance with the Texas Constitution, Article XI.

Section 3. Voter Disapproval of the Crime Control Prevention District.

A. In the event the voters of the City, at a duly called election concerning the continuation, dissolution or repeal of the Crime Control and Prevention District, rescind the authority for the Crime Control and Prevention District sales and use tax, the monetary obligations of the City under this Agreement shall terminate on the date of the canvass of such election.

B. In the event of action by the City Council under the prior paragraph, the Parties shall convene for the purpose of negotiating contract changes in the context of lost funding, but all other obligations of the Agreement shall otherwise continue unless agreed amendments are approved by both Parties.

Section 4. Changing Economic Conditions.

A. The parties understand and agree that to have sufficient revenue to fund the City's obligations herein, during the term of this Agreement (including the "evergreen" year), the impact that the state-mandated applicable 3.5% property tax caps will have on City revenue and, correspondingly,

City budgets, must be considered. Therefore, the parties understand and agree that, during the term of this Agreement, there may be a need to review revenues and economic indicators that directly tie to the funding resources available to satisfy the City's obligations under this Agreement.

B. If a combination of two or more of the three items below occurs in successive years during the term of this Agreement, then it is specifically understood and agreed by the parties that the City may require the Association to reopen negotiations concerning monetary compensation (salaries, overtime and special items of pay) and declare the Agreement open for further negotiations of compensation only:

1. Taxable value attributed to new growth added to the certified tax rolls is less than 1.0% as compared to the prior year
2. Taxable value attributed to reappraisals of properties currently on the certified tax rolls is less than 2.5% as compared to the prior year
3. Sales tax net collections experience zero or declining growth for 2 quarters as compared to the same period in the prior year

C. A notification to the Association to re-open negotiations under this section must be made on or before September 1 of a current fiscal year, for the following fiscal year. It is also specifically understood and agreed by the parties that in the event the negotiations are reopened, compensation amounts will be frozen as of the date the City informs the Association that the negotiations are reopened, and no increases in compensation will occur until new terms are negotiated by the parties. Fire fighters will not be allowed to move to the next pay step when otherwise eligible. The City shall inform the Association of such declaration in writing and, within a reasonable time after such notice, will provide information the City relied on to assert that the requisite factors set out in Subsection 4(b)(1-3) of this Article have occurred. In the event of such declaration by the City, the parties shall as soon as practicable begin new negotiations. Such reopened Collective Bargaining negotiations must be completed within 60 days after the face-to-face negotiations begin, unless the Association and the City agree, in writing, to extend the negotiations, for a term not to exceed 15 days for each extension.

D. Any Agreement between the Association and the City that results from the reopened Collective Bargaining negotiations, will not be effective unless and until it is approved by the City and the Association pursuant to the requirements of Article 32 of this Agreement.

Section 5. City Council Authority.

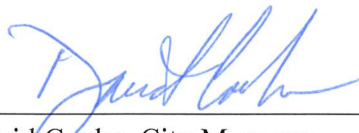
This Agreement does not impair the authority of the City Council to determine the number of authorized positions in the Department, or to change the classification of positions.

Section 6. Successor Agreement.

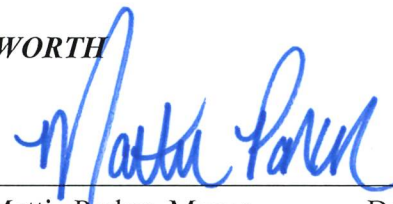
Negotiations for a successor agreement to this Agreement shall begin no later than October 1, 2025.

IN WITNESS WHEREOF, THE PARTIES HAVE CAUSED THIS AGREEMENT TO BE SIGNED BY THEIR DULY AUTHORIZED REPRESENTATIVES ON THE DATES INDICATED.

CITY OF FORT WORTH



David Cooke, City Manager 11/4/2022
Date



Mattie Parker, Mayor 11/4/22
Date

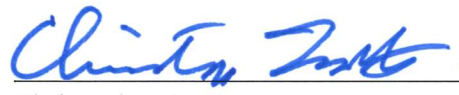


Valerie Washington,
Assistant City Manager 11/4/22
Date

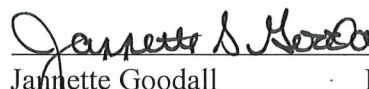


Approved as to Form and Legality:

Attested by:



Christopher A. Troutt 11/4/22
Senior Assistant City Attorney Date



Jannette Goodall 11/8/22
City Secretary Date

Fort Worth Professional Firefighters Association, IAFF Local 440



Michael Glynn, President 11/04/2022
Fort Worth Professional Firefighters
Association, IAFF Local 440 Date

APPENDIX A

CITY OF FORT WORTH
Fire Civil Service Classifications
Salary Schedule for FY 2022-2023

			56 Hour Schedule						
RANK	Years from Commission	Step	Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
Grade/Job Code									
FIREFIGHTER Y01/1032	Start	1	2,454	5,317	63,806	21.91	29.13	32.87	10.96
	1	2	2,575	5,580	66,957	22.99	29.13	34.49	11.50
	2	3	2,704	5,859	70,307	24.14	29.13	36.22	12.07
	3	4	2,840	6,153	73,832	25.35	29.13	38.03	12.68
	4	5	3,071	6,653	79,838	27.42	29.13	41.13	13.71
	5	6	3,223	6,984	83,809	28.78	30.22	43.17	14.39
	6	7	3,223	6,984	83,809	28.78	30.22	43.17	14.39
	7	8	3,223	6,984	83,809	28.78	30.22	43.17	14.39
	8	9	3,223	6,984	83,809	28.78	30.22	43.17	14.39
	9	10	3,318	7,189	86,266	29.62	31.11	44.44	14.81
	14	11	3,411	7,391	88,697	30.46	31.98	45.69	15.23
ENGINEER Y02/1031	Start	1							
	1	2							
	2	3	3,263	7,069	84,825	29.13	32.94	43.69	14.56
	3	4	3,426	7,422	89,069	30.59	32.94	45.88	15.29
	4	5	3,529	7,646	91,750	31.51	33.08	47.26	15.75
	5	6	3,529	7,646	91,750	31.51	33.08	47.26	15.75
	6	7	3,529	7,646	91,750	31.51	33.08	47.26	15.75
	7	8	3,529	7,646	91,750	31.51	33.08	47.26	15.75
	8	9	3,529	7,646	91,750	31.51	33.08	47.26	15.75
	9	10	3,632	7,869	94,430	32.43	34.05	48.64	16.21
	14	11	3,734	8,091	97,086	33.34	35.01	50.01	16.67
LIEUTENANT Y03/1030	Start	1							
	1	2							
	2	3							
	3	4							
	4	5	3,689	7,993	95,919	32.94	36.71	49.41	16.47
	5	6	3,872	8,390	100,685	34.58	36.71	51.86	17.29
	6	7	3,872	8,390	100,685	34.58	36.71	51.86	17.29
	7	8	3,872	8,390	100,685	34.58	36.71	51.86	17.29
	8	9	3,872	8,390	100,685	34.58	36.71	51.86	17.29
	9	10	3,985	8,634	103,613	35.58	37.36	53.37	17.79
	14	11	4,098	8,878	106,541	36.59	38.42	54.88	18.29

40 Hour Schedule						
Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
2,454	5,317	63,806	30.68	40.78	46.01	15.34
2,575	5,580	66,957	32.19	40.78	48.29	16.10
2,704	5,859	70,307	33.80	40.78	50.70	16.90
2,840	6,153	73,832	35.50	40.78	53.24	17.75
3,071	6,653	79,838	38.38	40.78	57.58	19.19
3,223	6,984	83,809	40.29	42.31	60.44	20.15
3,223	6,984	83,809	40.29	42.31	60.44	20.15
3,223	6,984	83,809	40.29	42.31	60.44	20.15
3,223	6,984	83,809	40.29	42.31	60.44	20.15
3,318	7,189	86,266	41.47	43.55	62.21	20.74
3,411	7,391	88,697	42.64	44.78	63.96	21.32
3,263	7,069	84,825	40.78	46.12	61.17	20.39
3,426	7,422	89,069	42.82	46.12	64.23	21.41
3,529	7,646	91,750	44.11	46.32	66.17	22.06
3,529	7,646	91,750	44.11	46.32	66.17	22.06
3,529	7,646	91,750	44.11	46.32	66.17	22.06
3,529	7,646	91,750	44.11	46.32	66.17	22.06
3,529	7,646	91,750	44.11	46.32	66.17	22.06
3,529	7,646	91,750	44.11	46.32	66.17	22.06
3,632	7,869	94,430	45.40	47.67	68.10	22.70
3,734	8,091	97,086	46.68	49.01	70.01	23.34
3,689	7,993	95,919	46.12	51.40	69.17	23.06
3,872	8,390	100,685	48.41	51.40	72.61	24.20
3,872	8,390	100,685	48.41	51.40	72.61	24.20
3,872	8,390	100,685	48.41	51.40	72.61	24.20
3,872	8,390	100,685	48.41	51.40	72.61	24.20
3,872	8,390	100,685	48.41	51.40	72.61	24.20
3,985	8,634	103,613	49.81	52.30	74.72	24.91
4,098	8,878	106,541	51.22	53.78	76.83	25.61

NOTES:

Across the Board Increases (ATBs) Pay Raise Percentage

FY 2022-2023	5.00%	Effective November 5, 2022 (PPB 24)
FY 2023-2024	3.10%	Effective First Full Pay Period after October 1, 2023 for FY 2023-2024
FY 2024-2025	3.00%	Effective First Full Pay Period after October 1, 2024 for FY 2024-2025
FY 2025-2026	3.00%	Effective First Full Pay Period after October 1, 2025 for FY 2024-2026

Start = Upon graduation from training academy; Step 1 = 1st anniversary of Commission Date; Step 2 = 2nd anniversary of Commission Date, etc.

Assistant Chiefs and Deputy Chiefs are not on a Step Plan. The Fire Chief determines the pay amount anywhere between the minimum and maximum of the Pay Range

Assistant Chief and Deputy Chief salary ranges will increase each Fiscal Year by the same percentage as the applicable Across the Board (ATB) pay raise in Article 9 for that Fiscal Year

Rate calculations: 40 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.
56 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

Step Hourly Rate:	The hourly rate of a step in a pay schedule (56 or 40 hour).
Step Hourly OT:	The overtime (OT) rate which is 1.5x the Step Hourly Rate. This is not the "regular rate" that overtime is based on.
Step HOF:	The holiday overtime rate for Fire ranks paid at 1 and 1/2 of the Step Hourly Rate for persons assigned to work, and who do work, on a City recognized Holiday.

CITY OF FORT WORTH
Fire Civil Service Classifications
Salary Schedule for FY 2022-2023

			56 Hour Schedule						
RANK	Years from Commission	Step	Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
Grade/Job Code									
CAPTAIN Y04/1029	Start	1							
	1	2							
	2	3							
	3	4							
	4	5							
	5	6							
	6	7	4,112	8,909	106,913	36.71	41.95	55.07	18.36
	7	8	4,317	9,354	112,249	38.55	41.95	57.82	19.27
	8	9	4,317	9,354	112,249	38.55	41.95	57.82	19.27
	9	10	4,443	9,627	115,525	39.67	41.95	59.51	19.84
	14	11	4,568	9,898	118,776	40.79	42.83	61.18	20.39

BATTALION CHIEF Y05/1028	Start	1							
	1	2							
	2	3							
	3	4							
	4	5							
	5	6							
	6	7							
	7	8							
	8	9	4,698	10,179	122,152	41.95	47.05	62.92	20.97
	9	10	5,077	11,000	132,004	45.33	47.60	68.00	22.67
	14	11	5,220	11,311	135,726	46.61	48.94	69.91	23.30

DEPUTY CHIEF Y07/1532	Minimum		5,270	11,418	137,019	47.05	52.86	70.58	23.53
	Maximum		6,113	13,244	158,931	54.58	57.31	81.87	27.29

ASSISTANT CHIEF Y08/1027	Minimum								
	Maximum								

[illegible]

NOTES:

Across the Board Increases (ATBs) Pay Raise Percentage

FY 2022-2023	5.00%	Effective November 5, 2022 (PPB 24)
FY 2023-2024	3.10%	Effective First Full Pay Period after October 1, 2023 for FY 2023-2024
FY 2024-2025	3.00%	Effective First Full Pay Period after October 1, 2024 for FY 2024-2025
FY 2025-2026	3.00%	Effective First Full Pay Period after October 1, 2025 for FY 2024-2026

Start = Upon graduation from training academy; Step 1 = 1st anniversary of Commission Date; Step 2 = 2nd anniversary of Commission Date, etc.

Assistant Chiefs and Deputy Chiefs are not on a Step Plan. The Fire Chief determines the pay amount anywhere between the minimum and maximum of the Pay Range

Assistant Chief and Deputy Chief salary ranges will increase each Fiscal Year by the same percentage as the applicable Across the Board (ATB) pay raise in Article 9 for that Fiscal Year

Rate calculations:

40 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

56 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

40 Hour Schedule						
Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF

4,112	8,909	106,913	51.40	58.73	77.10	25.70
4,317	9,354	112,249	53.97	58.73	80.95	26.98
4,317	9,354	112,249	53.97	58.73	80.95	26.98
4,443	9,627	115,525	55.54	58.73	83.31	27.77
4,568	9,898	118,776	57.10	59.96	85.66	28.55

4,698	10,179	122,152	58.73	65.87	88.09	29.36
5,077	11,000	132,004	63.46	66.64	95.19	31.73
5,220	11,311	135,726	65.25	68.52	97.88	32.63

5,270	11,418	137,019	65.87	74.01	98.81	32.94
6,113	13,244	158,931	76.41	80.23	114.61	38.20

5,921	12,828	153,942	74.01			
6,868	14,881	178,577	85.85			

1,535	3,326	39,915	19.19		28.78	9.59

Step Hourly Rate: The hourly rate of a step in a pay schedule (56 or 40 hour).

Step Hourly OT: The overtime (OT) rate which is 1.5x the Step Hourly Rate.

This is not the "regular rate" that overtime is based on.

Step HOE: The holiday overtime rate for Fire ranks paid at 1 and 1/2 of the Step Hourly Rate for persons assigned to work, and who do work, on a City recognized Holiday.

CITY OF FORT WORTH
Fire Civil Service Classifications
Salary Schedule for FY 2023-2024

			56 Hour Schedule						
RANK	Years from Commission	Step	Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
Grade/Job Code									
FIREFIGHTER Y01/1032	Start	1	2,530	5,482	65,784	22.59	30.03	33.89	11.30
	1	2	2,655	5,753	69,033	23.71	30.03	35.56	11.85
	2	3	2,788	6,041	72,487	24.89	30.03	37.34	12.45
	3	4	2,928	6,343	76,121	26.14	30.03	39.21	13.07
	4	5	3,166	6,859	82,313	28.27	30.03	42.40	14.13
	5	6	3,323	7,201	86,407	29.67	31.16	44.51	14.84
	6	7	3,323	7,201	86,407	29.67	31.16	44.51	14.84
	7	8	3,323	7,201	86,407	29.67	31.16	44.51	14.84
	8	9	3,323	7,201	86,407	29.67	31.16	44.51	14.84
	9	10	3,421	7,412	88,940	30.54	32.07	45.81	15.27
	14	11	3,517	7,621	91,447	31.40	32.97	47.11	15.70
ENGINEER Y02/1031	Start	1							
	1	2							
	2	3	3,364	7,288	87,455	30.03	33.96	45.05	15.02
	3	4	3,532	7,653	91,831	31.54	33.96	47.30	15.77
	4	5	3,638	7,883	94,595	32.48	34.11	48.73	16.24
	5	6	3,638	7,883	94,595	32.48	34.11	48.73	16.24
	6	7	3,638	7,883	94,595	32.48	34.11	48.73	16.24
	7	8	3,638	7,883	94,595	32.48	34.11	48.73	16.24
	8	9	3,638	7,883	94,595	32.48	34.11	48.73	16.24
	9	10	3,745	8,113	97,358	33.43	35.10	50.15	16.72
	14	11	3,850	8,341	100,096	34.37	36.09	51.56	17.19
LIEUTENANT Y03/1030	Start	1							
	1	2							
	2	3							
	3	4							
	4	5	3,804	8,241	98,893	33.96	37.85	50.94	16.98
	5	6	3,993	8,650	103,806	35.65	37.85	53.47	17.82
	6	7	3,993	8,650	103,806	35.65	37.85	53.47	17.82
	7	8	3,993	8,650	103,806	35.65	37.85	53.47	17.82
	8	9	3,993	8,650	103,806	35.65	37.85	53.47	17.82
	9	10	4,109	8,902	106,825	36.68	38.52	55.03	18.34
	14	11	4,225	9,154	109,843	37.72	39.61	56.58	18.86

40 Hour Schedule						
Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
2,530	5,482	65,784	31.63	42.05	47.44	15.81
2,655	5,753	69,033	33.19	42.05	49.78	16.59
2,788	6,041	72,487	34.85	42.05	52.27	17.42
2,928	6,343	76,121	36.60	42.05	54.89	18.30
3,166	6,859	82,313	39.57	42.05	59.36	19.79
3,323	7,201	86,407	41.54	43.62	62.31	20.77
3,323	7,201	86,407	41.54	43.62	62.31	20.77
3,323	7,201	86,407	41.54	43.62	62.31	20.77
3,323	7,201	86,407	41.54	43.62	62.31	20.77
3,421	7,412	88,940	42.76	44.90	64.14	21.38
3,517	7,621	91,447	43.96	46.16	65.95	21.98
3,364	7,288	87,455	42.05	47.54	63.07	21.02
3,532	7,653	91,831	44.15	47.54	66.22	22.07
3,638	7,883	94,595	45.48	47.75	68.22	22.74
3,638	7,883	94,595	45.48	47.75	68.22	22.74
3,638	7,883	94,595	45.48	47.75	68.22	22.74
3,638	7,883	94,595	45.48	47.75	68.22	22.74
3,638	7,883	94,595	45.48	47.75	68.22	22.74
3,638	7,883	94,595	45.48	47.75	68.22	22.74
3,745	8,113	97,358	46.81	49.15	70.21	23.40
3,850	8,341	100,096	48.12	50.53	72.18	24.06
3,804	8,241	98,893	47.54	52.99	71.32	23.77
3,993	8,650	103,806	49.91	52.99	74.86	24.95
3,993	8,650	103,806	49.91	52.99	74.86	24.95
3,993	8,650	103,806	49.91	52.99	74.86	24.95
3,993	8,650	103,806	49.91	52.99	74.86	24.95
4,109	8,902	106,825	51.36	53.93	77.04	25.68
4,225	9,154	109,843	52.81	55.45	79.21	26.40

NOTES:

Across the Board Increases (ATBs) Pay Raise Percentage

FY 2022-2023	5.00%	Effective November 5, 2022 (PPB 24)
FY 2023-2024	3.10%	Effective First Full Pay Period after October 1, 2023 for FY 2023-2024
FY 2024-2025	3.00%	Effective First Full Pay Period after October 1, 2024 for FY 2024-2025
FY 2025-2026	3.00%	Effective First Full Pay Period after October 1, 2025 for FY 2024-2026

Start = Upon graduation from training academy; Step 1 = 1st anniversary of Commission Date; Step 2 = 2nd anniversary of Commission Date, etc.

Assistant Chiefs and Deputy Chiefs are not on a Step Plan. The Fire Chief determines the pay amount anywhere between the minimum and maximum of the Pay Range

Assistant Chief and Deputy Chief salary ranges will increase each Fiscal Year by the same percentage as the applicable Across the Board (ATB) pay raise in Article 9 for that Fiscal Year

Rate calculations:

40 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.
56 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

Step Hourly Rate: The hourly rate of a step in a pay schedule (56 or 40 hour).

Step Hourly OT: The overtime (OT) rate which is 1.5x the Step Hourly Rate.

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Step HOF: The holiday overtime rate for Fire ranks paid at 1 and 1/2 of the Step Hourly Rate for persons assigned to work, and who do work, on a City recognized Holiday.

CITY OF FORT WORTH
Fire Civil Service Classifications
Salary Schedule for FY 2023-2024

			56 Hour Schedule						
RANK	Years from Commission	Step	Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
Grade/Job Code									
CAPTAIN Y04/1029	Start	1							
	1	2							
	2	3							
	3	4							
	4	5							
	5	6							
	6	7	4,240	9,186	110,227	37.85	43.25	56.78	18.93
	7	8	4,451	9,644	115,728	39.74	43.25	59.61	19.87
	8	9	4,451	9,644	115,728	39.74	43.25	59.61	19.87
	9	10	4,581	9,926	119,106	40.90	43.25	61.35	20.45
	14	11	4,710	10,205	122,459	42.05	44.16	63.08	21.03
BATTALION CHIEF Y05/1028	Start	1							
	1	2							
	2	3							
	3	4							
	4	5							
	5	6							
	6	7							
	7	8							
	8	9	4,844	10,495	125,939	43.25	48.51	64.87	21.62
	9	10	5,234	11,341	136,096	46.74	49.07	70.10	23.37
	14	11	5,382	11,661	139,934	48.05	50.46	72.08	24.03
DEPUTY CHIEF Y07/1532	Minimum		5,433	11,772	141,267	48.51	54.50	72.77	24.26
	Maximum		6,302	13,655	163,858	56.27	59.08	84.40	28.13
ASSISTANT CHIEF Y08/1027	Minimum								
	Maximum								
TRAINEES Y17/1026		1	1,535	3,326	39,915	13.71		20.56	6.85

40 Hour Schedule						
Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
4,240	9,186	110,227	52.99	60.55	79.49	26.50
4,451	9,644	115,728	55.64	60.55	83.46	27.82
4,451	9,644	115,728	55.64	60.55	83.46	27.82
4,581	9,926	119,106	57.26	60.55	85.89	28.63
4,710	10,205	122,459	58.87	61.82	88.31	29.44
4,844	10,495	125,939	60.55	67.92	90.82	30.27
5,234	11,341	136,096	65.43	68.70	98.15	32.72
5,382	11,661	139,934	67.28	70.64	100.91	33.64
5,433	11,772	141,267	67.92	76.30	101.87	33.96
6,302	13,655	163,858	78.78	82.72	118.17	39.39
6,104	13,226	158,714	76.30			
7,081	15,343	184,113	88.52			
1,535	3,326	39,915	19.19		28.78	9.59

NOTES:

Across the Board Increases (ATBs) Pay Raise Percentage

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FY 2025-2026	3.00%	Effective First Full Pay Period after October 1, 2025 for FY 2024-2026

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Rate calculations:

40 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

56 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

Step Hourly Rate: The hourly rate of a step in a pay schedule (56 or 40 hour).

Step Hourly OT: The overtime (OT) rate which is 1.5x the Step Hourly Rate.

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Step HOF: The holiday overtime rate for Fire ranks paid at 1 and 1/2 of the Step Hourly Rate for persons assigned to work, and who do work, on a City recognized Holiday.

CITY OF FORT WORTH
Fire Civil Service Classifications
Salary Schedule for FY 2024-2025

			56 Hour Schedule						
RANK	Years from Commission	Step	Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
Grade/Job Code									
FIREFIGHTER Y01/1032	Start	1	2,606	5,646	67,757	23.27	30.93	34.90	11.63
	1	2	2,735	5,925	71,104	24.42	30.93	36.63	12.21
	2	3	2,872	6,222	74,661	25.64	30.93	38.46	12.82
	3	4	3,016	6,534	78,404	26.92	30.93	40.39	13.46
	4	5	3,261	7,065	84,783	29.11	30.93	43.67	14.56
	5	6	3,423	7,417	88,999	30.56	32.09	45.84	15.28
	6	7	3,423	7,417	88,999	30.56	32.09	45.84	15.28
	7	8	3,423	7,417	88,999	30.56	32.09	45.84	15.28
	8	9	3,423	7,417	88,999	30.56	32.09	45.84	15.28
	9	10	3,523	7,634	91,608	31.46	33.03	47.19	15.73
	14	11	3,623	7,849	94,190	32.35	33.96	48.52	16.17

40 Hour Schedule						
Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
2,606	5,646	67,757	32.58	43.31	48.86	16.29
2,735	5,925	71,104	34.18	43.31	51.28	17.09
2,872	6,222	74,661	35.89	43.31	53.84	17.95
3,016	6,534	78,404	37.69	43.31	56.54	18.85
3,261	7,065	84,783	40.76	43.31	61.14	20.38
3,423	7,417	88,999	42.79	44.93	64.18	21.39
3,423	7,417	88,999	42.79	44.93	64.18	21.39
3,423	7,417	88,999	42.79	44.93	64.18	21.39
3,423	7,417	88,999	42.79	44.93	64.18	21.39
3,523	7,634	91,608	44.04	46.24	66.06	22.02
3,623	7,849	94,190	45.28	47.55	67.93	22.64

ENGINEER Y02/1031	Start	1							
	1	2							
	2	3	3,465	7,507	90,079	30.93	34.98	46.40	15.47
	3	4	3,638	7,882	94,586	32.48	34.98	48.72	16.24
	4	5	3,747	8,119	97,433	33.46	35.13	50.19	16.73
	5	6	3,747	8,119	97,433	33.46	35.13	50.19	16.73
	6	7	3,747	8,119	97,433	33.46	35.13	50.19	16.73
	7	8	3,747	8,119	97,433	33.46	35.13	50.19	16.73
	8	9	3,747	8,119	97,433	33.46	35.13	50.19	16.73
	9	10	3,857	8,357	100,278	34.44	36.16	51.65	17.22
	14	11	3,965	8,592	103,099	35.40	37.18	53.11	17.70

3,465	7,507	90,079	43.31	48.97	64.96	21.65
3,638	7,882	94,586	45.47	48.97	68.21	22.74
3,747	8,119	97,433	46.84	49.18	70.26	23.42
3,747	8,119	97,433	46.84	49.18	70.26	23.42
3,747	8,119	97,433	46.84	49.18	70.26	23.42
3,747	8,119	97,433	46.84	49.18	70.26	23.42
3,747	8,119	97,433	46.84	49.18	70.26	23.42
3,747	8,119	97,433	46.84	49.18	70.26	23.42
3,857	8,357	100,278	48.21	50.62	72.32	24.11
3,965	8,592	103,099	49.57	52.05	74.35	24.78

LIEUTENANT Y03/1030	Start	1							
	1	2							
	2	3							
	3	4							
	4	5	3,918	8,488	101,860	34.98	38.99	52.47	17.49
	5	6	4,112	8,910	106,920	36.72	38.99	55.08	18.36
	6	7	4,112	8,910	106,920	36.72	38.99	55.08	18.36
	7	8	4,112	8,910	106,920	36.72	38.99	55.08	18.36
	8	9	4,112	8,910	106,920	36.72	38.99	55.08	18.36
	9	10	4,232	9,169	110,029	37.78	39.67	56.68	18.89
	14	11	4,351	9,428	113,139	38.85	40.80	58.28	19.43

3,918	8,488	101,860	48.97	54.58	73.46	24.49
4,112	8,910	106,920	51.40	54.58	77.11	25.70
4,112	8,910	106,920	51.40	54.58	77.11	25.70
4,112	8,910	106,920	51.40	54.58	77.11	25.70
4,112	8,910	106,920	51.40	54.58	77.11	25.70
4,232	9,169	110,029	52.90	55.54	79.35	26.45
4,351	9,428	113,139	54.39	57.11	81.59	27.20

NOTES:

Across the Board Increases (ATBs) Pay Raise Percentage

FY 2022-2023	5.00%	Effective November 5, 2022 (PPB 24)
FY 2023-2024	3.10%	Effective First Full Pay Period after October 1, 2023 for FY 2023-2024
FY 2024-2025	3.00%	Effective First Full Pay Period after October 1, 2024 for FY 2024-2025
FY 2025-2026	3.00%	Effective First Full Pay Period after October 1, 2025 for FY 2024-2026

Start = Upon graduation from training academy; Step 1 = 1st anniversary of Commission Date; Step 2 = 2nd anniversary of Commission Date, etc.

Assistant Chiefs and Deputy Chiefs are not on a Step Plan. The Fire Chief determines the pay amount anywhere between the minimum and maximum of the Pay Range

Assistant Chief and Deputy Chief salary ranges will increase each Fiscal Year by the same percentage as the applicable Across the Board (ATB) pay raise in Article 9 for that Fiscal Year

Rate calculations:

40 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

56 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

Step Hourly Rate: The hourly rate of a step in a pay schedule (56 or 40 hour).

Step Hourly OT: The overtime (OT) rate which is 1.5x the Step Hourly Rate.

This is not the "regular rate" that overtime is based on.

Step HOF: The holiday overtime rate for Fire ranks paid at 1 and 1/2 of the Step Hourly Rate for persons assigned to work, and who do work, on a City recognized Holiday.

CITY OF FORT WORTH
Fire Civil Service Classifications
Salary Schedule for FY 2024-2025

			56 Hour Schedule						
RANK	Years from Commission	Step	Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
Grade/Job Code									
CAPTAIN Y04/1029	Start	1							
	1	2							
	2	3							
	3	4							
	4	5							
	5	6							
	6	7	4,367	9,461	113,534	38.99	44.55	58.48	19.49
	7	8	4,585	9,933	119,200	40.93	44.55	61.40	20.47
	8	9	4,585	9,933	119,200	40.93	44.55	61.40	20.47
	9	10	4,718	10,223	122,680	42.13	44.55	63.19	21.06
	14	11	4,851	10,511	126,132	43.31	45.48	64.97	21.66
BATTALION CHIEF Y05/1028	Start	1							
	1	2							
	2	3							
	3	4							
	4	5							
	5	6							
	6	7							
	7	8							
	8	9	4,989	10,810	129,717	44.55	49.97	66.82	22.27
	9	10	5,391	11,682	140,179	48.14	50.55	72.21	24.07
	14	11	5,544	12,011	144,132	49.50	51.97	74.24	24.75
DEPUTY CHIEF Y07/1532	Minimum		5,596	12,125	145,505	49.97	56.14	74.95	24.98
	Maximum		6,491	14,064	168,774	57.96	60.86	86.94	28.98
ASSISTANT CHIEF Y08/1027	Minimum								
	Maximum								
TRAINEES Y17/1026		1	1,535	3,326	39,915	13.71		20.56	6.85

40 Hour Schedule						
Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
4,367	9,461	113,534	54.58	62.36	81.88	27.29
4,585	9,933	119,200	57.31	62.36	85.96	28.65
4,585	9,933	119,200	57.31	62.36	85.96	28.65
4,718	10,223	122,680	58.98	62.36	88.47	29.49
4,851	10,511	126,132	60.64	63.67	90.96	30.32
4,989	10,810	129,717	62.36	69.95	93.55	31.18
5,391	11,682	140,179	67.39	70.76	101.09	33.70
5,544	12,011	144,132	69.29	72.76	103.94	34.65
5,596	12,125	145,505	69.95	78.59	104.93	34.98
6,491	14,064	168,774	81.14	85.20	121.71	40.57
6,288	13,623	163,475	78.59			
7,294	15,803	189,637	91.17			
1,535	3,326	39,915	19.19		28.78	9.59

NOTES:

Across the Board Increases (ATBs) Pay Raise Percentage

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FY 2024-2025	3.00%	Effective First Full Pay Period after October 1, 2024 for FY 2024-2025
FY 2025-2026	3.00%	Effective First Full Pay Period after October 1, 2025 for FY 2024-2026

Start = Upon graduation from training academy; Step 1 = 1st anniversary of Commission Date; Step 2 = 2nd anniversary of Commission Date, etc.

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Rate calculations: 40 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.
56 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

Step Hourly Rate: The hourly rate of a step in a pay schedule (56 or 40 hour).

Step Hourly OT: The overtime (OT) rate which is 1.5x the Step Hourly Rate.
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Step HOF: The holiday overtime rate for Fire ranks paid at 1 and 1/2 of the Step Hourly Rate for persons assigned to work, and who do work, on a City recognized Holiday.

CITY OF FORT WORTH
Fire Civil Service Classifications
Salary Schedule for FY 2025-2026

			56 Hour Schedule						
RANK	Years from Commission	Step	Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
Grade/Job Code									
FIREFIGHTER Y01/1032	Start	1	2,684	5,816	69,790	23.97	31.86	35.95	11.98
	1	2	2,817	6,103	73,237	25.15	31.86	37.72	12.57
	2	3	2,958	6,408	76,901	26.41	31.86	39.61	13.20
	3	4	3,106	6,730	80,756	27.73	31.86	41.60	13.87
	4	5	3,359	7,277	87,326	29.99	31.86	44.98	14.99
	5	6	3,526	7,639	91,669	31.48	33.05	47.22	15.74
	6	7	3,526	7,639	91,669	31.48	33.05	47.22	15.74
	7	8	3,526	7,639	91,669	31.48	33.05	47.22	15.74
	8	9	3,526	7,639	91,669	31.48	33.05	47.22	15.74
	9	10	3,629	7,863	94,356	32.40	34.02	48.60	16.20
	14	11	3,731	8,085	97,016	33.32	34.98	49.97	16.66
ENGINEER Y02/1031	Start	1							
	1	2							
	2	3	3,569	7,732	92,781	31.86	36.03	47.79	15.93
	3	4	3,747	8,119	97,423	33.46	36.03	50.18	16.73
	4	5	3,860	8,363	100,356	34.46	36.19	51.69	17.23
	5	6	3,860	8,363	100,356	34.46	36.19	51.69	17.23
	6	7	3,860	8,363	100,356	34.46	36.19	51.69	17.23
	7	8	3,860	8,363	100,356	34.46	36.19	51.69	17.23
	8	9	3,860	8,363	100,356	34.46	36.19	51.69	17.23
	9	10	3,973	8,607	103,287	35.47	37.24	53.20	17.73
	14	11	4,084	8,849	106,192	36.47	38.29	54.70	18.23
LIEUTENANT Y03/1030	Start	1							
	1	2							
	2	3							
	3	4							
	4	5	4,035	8,743	104,915	36.03	40.16	54.04	18.01
	5	6	4,236	9,177	110,128	37.82	40.16	56.73	18.91
	6	7	4,236	9,177	110,128	37.82	40.16	56.73	18.91
	7	8	4,236	9,177	110,128	37.82	40.16	56.73	18.91
	8	9	4,236	9,177	110,128	37.82	40.16	56.73	18.91
	9	10	4,359	9,444	113,330	38.92	40.86	58.38	19.46
	14	11	4,482	9,711	116,533	40.02	42.02	60.03	20.01

40 Hour Schedule						
Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
2,684	5,816	69,790	33.55	44.61	50.33	16.78
2,817	6,103	73,237	35.21	44.61	52.81	17.60
2,958	6,408	76,901	36.97	44.61	55.46	18.49
3,106	6,730	80,756	38.83	44.61	58.24	19.41
3,359	7,277	87,326	41.98	44.61	62.98	20.99
3,526	7,639	91,669	44.07	46.28	66.11	22.04
3,526	7,639	91,669	44.07	46.28	66.11	22.04
3,526	7,639	91,669	44.07	46.28	66.11	22.04
3,526	7,639	91,669	44.07	46.28	66.11	22.04
3,629	7,863	94,356	45.36	47.63	68.05	22.68
3,731	8,085	97,016	46.64	48.97	69.96	23.32
3,569	7,732	92,781	44.61	50.44	66.91	22.30
3,747	8,119	97,423	46.84	50.44	70.26	23.42
3,860	8,363	100,356	48.25	50.66	72.37	24.12
3,860	8,363	100,356	48.25	50.66	72.37	24.12
3,860	8,363	100,356	48.25	50.66	72.37	24.12
3,860	8,363	100,356	48.25	50.66	72.37	24.12
3,860	8,363	100,356	48.25	50.66	72.37	24.12
3,860	8,363	100,356	48.25	50.66	72.37	24.12
3,973	8,607	103,287	49.66	52.14	74.49	24.83
4,084	8,849	106,192	51.05	53.61	76.58	25.53
4,035	8,743	104,915	50.44	56.22	75.66	25.22
4,236	9,177	110,128	52.95	56.22	79.42	26.47
4,236	9,177	110,128	52.95	56.22	79.42	26.47
4,236	9,177	110,128	52.95	56.22	79.42	26.47
4,236	9,177	110,128	52.95	56.22	79.42	26.47
4,236	9,177	110,128	52.95	56.22	79.42	26.47
4,359	9,444	113,330	54.49	57.21	81.73	27.24
4,482	9,711	116,533	56.03	58.83	84.04	28.01

NOTES:

Across the Board Increases (ATBs) Pay Raise Percentage

FY 2022-2023	5.00%	Effective November 5, 2022 (PPB 24)
FY 2023-2024	3.10%	Effective First Full Pay Period after October 1, 2023 for FY 2023-2024
FY 2024-2025	3.00%	Effective First Full Pay Period after October 1, 2024 for FY 2024-2025
FY 2025-2026	3.00%	Effective First Full Pay Period after October 1, 2025 for FY 2024-2026

Start = Upon graduation from training academy; Step 1 = 1st anniversary of Commission Date; Step 2 = 2nd anniversary of Commission Date, etc.

Assistant Chiefs and Deputy Chiefs are not on a Step Plan. The Fire Chief determines the pay amount anywhere between the minimum and maximum of the Pay Range

Assistant Chief and Deputy Chief salary ranges will increase each Fiscal Year by the same percentage as the applicable Across the Board (ATB) pay raise in Article 9 for that Fiscal Year

Rate calculations: 40 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.
56 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

Step Hourly Rate: The hourly rate of a step in a pay schedule (56 or 40 hour).

Step Hourly OT: The overtime (OT) rate which is 1.5x the Step Hourly Rate.

This is not the "regular rate" that overtime is based on.

Step HOF: The holiday overtime rate for Fire ranks paid at 1 and 1/2 of the Step Hourly Rate for persons assigned to work, and who do work, on a City recognized Holiday.

CITY OF FORT WORTH
Fire Civil Service Classifications
Salary Schedule for FY 2025-2026

			56 Hour Schedule						
RANK	Years from Commission	Step	Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
Grade/Job Code									
CAPTAIN Y04/1029	Start	1							
	1	2							
	2	3							
	3	4							
	4	5							
	5	6							
	6	7	4,498	9,745	116,940	40.16	45.88	60.24	20.08
	7	8	4,722	10,231	122,776	42.16	45.88	63.24	21.08
	8	9	4,722	10,231	122,776	42.16	45.88	63.24	21.08
	9	10	4,860	10,530	126,360	43.39	45.88	65.09	21.70
	14	11	4,997	10,826	129,916	44.61	46.84	66.92	22.31
BATTALION CHIEF Y05/1028	Start	1							
	1	2							
	2	3							
	3	4							
	4	5							
	5	6							
	6	7							
	7	8							
	8	9	5,139	11,134	133,608	45.88	51.47	68.82	22.94
	9	10	5,553	12,032	144,384	49.58	52.06	74.37	24.79
	14	11	5,710	12,371	148,456	50.98	53.53	76.47	25.49
DEPUTY CHIEF Y07/1532	Minimum		5,764	12,489	149,870	51.47	57.82	77.20	25.73
	Maximum		6,686	14,486	173,837	59.70	62.68	89.55	29.85
ASSISTANT CHIEF Y08/1027	Minimum								
	Maximum								
TRAINEES Y17/1026		1	1,535	3,326	39,915	13.71		20.56	6.85

40 Hour Schedule						
Bi-Weekly	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
4,498	9,745	116,940	56.22	64.23	84.33	28.11
4,722	10,231	122,776	59.03	64.23	88.54	29.51
4,722	10,231	122,776	59.03	64.23	88.54	29.51
4,860	10,530	126,360	60.75	64.23	91.12	30.37
4,997	10,826	129,916	62.46	65.58	93.69	31.23
5,139	11,134	133,608	64.23	72.05	96.35	32.12
5,553	12,032	144,384	69.42	72.89	104.12	34.71
5,710	12,371	148,456	71.37	74.94	107.06	35.69
5,764	12,489	149,870	72.05	80.95	108.08	36.03
6,686	14,486	173,837	83.58	87.75	125.36	41.79
6,476	14,032	168,380	80.95			
7,513	16,277	195,326	93.91			
1,535	3,326	39,915	19.19		28.78	9.59

NOTES:

Across the Board Increases (ATBs) Pay Raise Percentage

FY 2022-2023	5.00%	Effective November 5, 2022 (PPB 24)
FY 2023-2024	3.10%	Effective First Full Pay Period after October 1, 2023 for FY 2023-2024
FY 2024-2025	3.00%	Effective First Full Pay Period after October 1, 2024 for FY 2024-2025
FY 2025-2026	3.00%	Effective First Full Pay Period after October 1, 2025 for FY 2024-2026

Start = Upon graduation from training academy; Step 1 = 1st anniversary of Commission Date; Step 2 = 2nd anniversary of Commission Date, etc.

Assistant Chiefs and Deputy Chiefs are not on a Step Plan. The Fire Chief determines the pay amount anywhere between the minimum and maximum of the Pay Range

Assistant Chief and Deputy Chief salary ranges will increase each Fiscal Year by the same percentage as the applicable Across the Board (ATB) pay raise in Article 9 for that Fiscal Year

Rate calculations:

40 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

56 hour schedule: Per Pay Period, Monthly and Annual rates are approximations.

Step Hourly Rate: The hourly rate of a step in a pay schedule (56 or 40 hour).

Step Hourly OT: The overtime (OT) rate which is 1.5x the Step Hourly Rate.

This is not the "regular rate" that overtime is based on.

Step HOF: The holiday overtime rate for Fire ranks paid at 1 and 1/2 of the Step Hourly Rate for persons assigned to work, and who do work, on a City recognized Holiday.

Summary of Pay Adjustments to Fire Pay Structure for Assistant Chiefs and Deputy Chiefs

		56 Hour Schedule										40 Hour Schdule						
Year	General Pay Structure Increase	RANK	Years from Commission	Step	Per Pay Period	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF	Per Pay Period	Monthly	Annual	Step Hourly Rate	Acting Rate	Step Hourly OT	Step HOF
		Grade/Job Code																
FY 2023	5%	DEPUTY CHIEF	Minimum		5,270	11,418	137,019	47.05	52.86	70.58	23.53	5,270	11,418	137,019	65.87	74.01	98.81	32.94
		Y07/1532	Maximum		6,113	13,244	158,931	54.58	57.31	81.87	27.29	6,113	13,244	158,931	76.41	80.23	114.61	38.20
		ASSISTANT	Minimum									5,921	12,828	153,942	74.01			
		Y08/1027	Maximum									6,868	14,881	178,577	85.85			
FY 2022	3%	DEPUTY CHIEF	Minimum		5,019	10,875	130,494	44.81	50.35	67.22	22.41	5,019	10,875	130,494	62.74	70.49	94.11	31.37
		Y07/1532	Maximum		5,822	12,614	151,363	51.98	54.58	77.97	25.99	5,822	12,614	151,363	72.77	76.41	109.16	36.39
		ASSISTANT	Minimum									5,639	12,218	146,611	70.49			
		Y08/1027	Maximum									6,541	14,173	170,074	81.77			
FY 2021	0%	DEPUTY CHIEF	Minimum		4,873	10,558	126,693	43.51	48.88	65.26	21.75	4,873	10,558	126,693	60.91	68.43	91.37	30.46
		Y07/1532	Maximum		5,652	12,246	146,954	50.46	52.99	75.70	25.23	5,652	12,246	146,954	70.65	74.18	105.98	35.33
		ASSISTANT	Minimum									5,475	11,862	142,341	68.43			
		Y08/1027	Maximum									6,351	13,760	165,120	79.38			
FY 2020	0%	DEPUTY CHIEF	Minimum		4,873	10,558	126,693	43.51	48.88	65.26	21.75	4,873	10,558	126,693	60.91	68.43	91.37	30.46
		Y07/1532	Maximum		5,652	12,246	146,954	50.46	52.99	75.70	25.23	5,652	12,246	146,954	70.65	74.18	105.98	35.33
		ASSISTANT	Minimum									5,475	11,862	142,341	68.43			
		Y08/1027	Maximum									6,351	13,760	165,120	79.38			
Per Agreement: Effective Pay Period Beginning July 6, 2019 (PPB15): STARTING PAY																		
FY 2019	3	DEPUTY CHIEF	Minimum		4,873	10,558	126,693	43.51	48.88	65.26	21.75	4,873	10,558	126,693	60.91	68.43	91.37	30.46
		Y07/1532	Maximum		5,652	12,246	146,954	50.46	52.99	75.70	25.23	5,652	12,246	146,954	70.65	74.18	105.98	35.33
		ASSISTANT	Minimum									5,475	11,862	142,341	68.43			
		Y08/1027	Maximum									6,351	13,760	165,120	79.38			
FY 2018	2	DEPUTY CHIEF	Minimum		4,731	10,250	123,003	42.24	47.46	63.36	21.12	4,731	10,250	123,003	59.14	66.44	88.70	29.57
		Y07/1532	Maximum		5,487	11,890	142,674	49.00	51.45	73.49	24.50	5,487	11,890	142,674	68.59	72.02	102.89	34.30
		ASSISTANT	Minimum									5,315	11,516	138,194	66.44			
		Y08/1027	Maximum									6,166	13,359	160,311	77.07			

APPENDIX B

Healthcare Contract, as Amended - 2022

This Healthcare Contract, as Amended - 2022 (“Agreement”) is entered into between the City of Fort Worth (the “City”) and the Fort Worth Professional Firefighters Association (the “Association”) as an addendum to the 2022-2026 Collective Bargaining Agreement (“CBA”) between the Parties and any successor collectively bargained agreements between the Parties. The Association and the City collectively are referred to herein as the “Parties.”

WHEREAS, the Association provides a separately administered and funded healthcare plan for the Covered Populations, as defined below with the City retaining coverage obligations for Medicare Retirees; and

WHEREAS, the Association operates a tax-exempt Trust (the “Trust”) for the purpose of funding a healthcare plan to the Covered Populations; and

WHEREAS, the City contributes an amount of money as calculated by the City to be placed in the Trust periodically; and

WHEREAS, although the City may continue to offer some benefits to some or all of the Covered Populations to the extent such benefits are not available under the Trust, the Trust will be the only avenue for the Covered Populations to obtain those benefits that are provided or offered by the Trust; and

WHEREAS, for each full or partial calendar/plan year in which this Agreement remains in effect, the City will be relieved from, and the Trust will be solely responsible for, providing a healthcare plan for members of the Covered Populations who would have qualified for coverage under the City’s Healthcare Plan during that year.

NOW, THEREFORE, in consideration of the mutual promises and agreements contained herein, including the recitals set forth above, the Parties agree as follows:

Section 1. Definitions.

a. “Board of Trustees” means the governing body of the Trust as detailed in the Trust Agreement, attached hereto as Exhibit A.

b. “Business Day” shall mean a day on which Fort Worth City Hall is open to the public and shall exclude Saturdays, Sundays, and City holidays.

c. “City Contributions” means funds provided by the City for purposes of subsidizing healthcare benefits of the Covered Populations. Such contributions may not be used for voluntary benefits. It does not include money deducted from the pay of active Fire Fighters or Recruits for healthcare premiums that is remitted to the Trust for the Local 440 Benefit Plan(s).

d. “City Healthcare Plan” means the healthcare plan that the City offers to retired employees, eligible spouses and dependents, as amended from time to time.

e. “City Subsidy” means the rate table reflecting each plan design for actives, retirees, spouses, dependents and each combination thereof developed for the City’s Healthcare Plan each year.

f. “Code” means the Internal Revenue Code of 1986, as amended, and regulations adopted thereunder. The term includes any subsequent amendments to or successors of those statutes or regulations.

g. “Covered Populations” means Recruits, Fire Fighters, Future Retirees, Pre-Medicare Retirees, Eligible Spouses, and Eligible Dependents eligible to receive healthcare and other benefits under this Agreement. The term does not include Medicare Retirees. The term also does not include any Pre-Medicare Retiree, whether single or part of a married couple, who has chosen to not enroll in the Local 440 Benefit Plan, nor their eligible spouse and eligible dependents.

h. “Effective Date” means May 1, 2018.

i. “Eligible Dependent” means a legal dependent (other than an Eligible Spouse) who would be eligible for coverage on the City’s Healthcare Plan due to the person’s relationship to a Recruit, Fire Fighter, Future Retiree, or Pre-Medicare Retiree.

j. “Eligible Spouse” means a legal spouse who would be eligible for coverage on the City’s Healthcare Plan due to the person’s relationship to a Recruit, Fire Fighter, Future Retiree, or Pre-Medicare Retiree.

k. “Fire Fighter” means any active employee and member of the bargaining unit represented by the Association.

l. “Future Retiree” means any Fire Fighter who had not retired before the ratification of the initial Agreement in 2018 and is thereby governed by the terms of the 2014 Collective Bargaining or successor agreements and retires from the City on or after the Effective Date.

m. “Health Savings Account Plan” or “HSA Plan,” also known as a high deductible healthcare plan, means one in which a participating member pays a higher-than-normal deductible in exchange for a lower premium cost and, in the case of the City’s HSA Plan, incorporates a health savings account funded with pre-tax contributions by the participant and/or employer with the balance in the account for use in paying qualified medical expenses in accordance with the Code.

n. “Local 440 Benefit Plan” shall mean the plan provided to the Covered Populations under this Agreement, which will include medical, pharmacy, and dental benefits, and may include other benefits and products related to physical or mental health.

o. “Medicare Retiree” means any former Fire Fighter who retired from a position within the bargaining unit represented by the Association before the Transition Date and who, as of the Transition Date, meets the age requirement for Medicare or is otherwise eligible to receive current Medicare benefits. The term includes an Eligible Spouse or Eligible Dependent of a Medicare Retiree.

p. “Post-Transition Claims” means all claims incurred on or after the Transition Date that are the responsibility of the new plan. Hospitalizations or other inpatient treatments commenced on or after the Transition Date shall be considered to be Post-Transition claims.

q. “Pre-Medicare Retiree” means any former Fire Fighter who retired from a position within the bargaining unit represented by the Association before the Transition Date and who as of the Transition Date had not yet met the age requirement to be eligible for Medicare.

r. “Recruit” shall mean any employee of the City of Fort Worth who is participating in a City of Fort Worth Fire Fighter Training Academy and who is covered by this Healthcare Contract as a condition of employment and will be represented by the Association upon graduation, both as a consequence of Texas Local Government Code 174.001 et seq.

s. “Third-Party Administrator” or “TPA” means an organization that processes medical or healthcare claims or certain aspects of employee benefit plans offered by the Trust and the Local 440 Benefit Plan(s).

t. “Transition Date” means the date of January 1, 2019 on which coverage for Recruits, Fire Fighters, Future Retirees, Pre-Medicare Retirees, Eligible Spouses, and Eligible Dependents shifted to the Trust in accordance with Section 5.

Section 2. Coverage and the Provider.

a. The Association and the City entered into the initial Agreement in 2018 to obligate the Association to take appropriate steps to create a Trust that would administer a healthcare plan for the Covered Populations and allow the Trust formed by the Association to offer a dental plan and other voluntary benefits that may include vision, disability, and life insurance. All of the Covered Populations who are eligible to participate in the Local 440 Benefit Plan(s) will be excluded from the City’s Healthcare Plan’s offerings with the exception of benefits identified in Section 2.c.

b. The City shall continue to allow the Trust to participate as a sub-organization under the City’s dental plan so long as the plan mirrors the City’s exactly, the cost is billed separately to the Trust, and the arrangement is reasonable for all parties.

c. The City shall continue to provide an Employee Assistance Program to Fire Fighters and Recruits and their Eligible Spouses and Eligible Dependents, if provided by the City to other active employees and their eligible spouse and dependents.

d. The City shall continue to provide to active Fire Fighters and Recruits coverage under basic life insurance at the City's expense if provided by the City to other active employees.

e. In accordance with the requirements of the Code, the City shall continue to administer any Health Savings Accounts and Flexible Spending Accounts (respectively, "HSA" and "FSA") for eligible Fire Fighters, Recruits, and Pre-Medicare Retirees if provided by the City to other active employees. All third-party administration costs related to administering HSAs and FSAs for eligible members of the Covered Populations will be deducted from the City Contributions as detailed below.

f. Benefits described in Sections 2.b through 2.d are subject to change or discontinuation at any time in the discretion of the City. Availability to Covered Populations shall be contingent on benefits being available to other active City employees.

Section 3. The Trust.

a. The Association shall continue to operate a tax-exempt trust (the "Trust") in compliance with all State and Federal laws and with the sole purpose to fund and administer the Local 440 Benefit Plan(s) for the Covered Populations. The Trust must obtain Internal Revenue Service approval for the Trust to function as a tax-exempt, non-profit entity, provided, however that such approval is not a prerequisite to execution or implementation of this Agreement or the transition of Covered Populations to the Local 440 Benefit Plan(s).

b. The Trust is prohibited from providing benefits to any persons outside of the Covered Populations contemplated by this Agreement. However, the Parties acknowledge and agree that a future, mutually agreed healthcare contract and/or collective bargaining agreement may expand the concept of Covered Populations and allow the Association and/or Trust to provide a healthcare plan or other benefits for Medicare Retirees, their eligible spouses and dependents, or others.

c. The instrument governing the Trust shall be consistent with the form and content of the Trust Agreement attached as Exhibit A. The Trust shall limit investment options to those authorized by the Trust's duly adopted Investment Policy Statement, which shall be provided to the City for approval at least thirty (30) days before adoption. The Trust shall prevent prohibited transactions such as loans and excess compensation.

d. The Trust shall not compensate any member of the Covered Populations for managing the Trust; however, this provision does not prohibit the Board of Trustees from hiring member liaisons who have the limited responsibility of explaining plan benefits, addressing open enrollment questions, and directing participants to appropriate vendors for issue resolution. In addition, this provision does not prohibit the Board of Trustees from hiring and compensating an appropriate number of staff who are not members of the Covered Populations to manage the affairs of the Trust.

e. Expenditures from the Trust for travel, training, and conferences for the purpose of fulfilling the Board of Trustees' responsibilities to the Local 440 Benefit Plan(s) shall be limited to destinations in the United States. Where feasible or practical, the Trustees shall participate in organizations and meetings located in the Dallas-Fort Worth area of Texas to minimize travel and related expenses. All travel and training shall comply with a formal Travel and Training Policy adopted by the Board of Trustees that places appropriate limits on frequency, duration and cost of travel.

f. The City recognizes that the Trust will incur administrative expenses, including broker and benefit-administrator fees, related to providing healthcare coverage, and Trust assets may be used for purposes of paying such expenses. All administrative expenses shall be accounted for separately and / or disclosed on Schedule C of Form 5500.

g. The City also recognizes that the Association may offer certain health and wellness related voluntary benefits that may be administered as part of the Trust. Any provision by the Association of voluntary benefits may be included in the Trust but must be funded and accounted for separately from the City Contributions.

h. The Association will invite an employee of the City designated by the City Manager to participate as an ex ex-officio member at all regular and specially called meetings of the Board of Trustees; however, said designee will not have a voting position or assume any fiduciary responsibility for the City in the management of the Trust or administration of the Local 440 Benefit Plan(s). The ex-officio member will be given at least 30 days advance notice of any regularly scheduled meeting, and at least seven days advance notice of any special meeting, and receive a copy of all materials provided to the Board of Trustees related to the management of the Trust in the same manner as other Trustees.

i. The Trust will cover, at a minimum, all of the Covered Populations who would be eligible for coverage as determined by the City each year. All other healthcare plan decisions, including but not limited to, the level of coverage, who is covered (with or without City subsidy as determined by this Agreement), and the amount to be paid by the Covered Populations, will be made by the Trust, provided the level of coverage meets the requirements of minimum essential coverage under section 4980H of the Code or any successor thereto. The Association and the Trust acknowledge and agree that the City is not taking any claims risk, and that the sole responsibility of the City is to pay the agreed-upon City Contributions. All decisions related to the healthcare and related benefits for the Covered Populations will be made by the Trust. ***Under no circumstances shall any action or decision of the Association or the Trust, including but not limited to providing additional subsidies to participants in the Local 440 Benefit Plan(s), be construed or interpreted to alter the obligations of the City to the Covered Populations in the event of a return to the City's Healthcare Plans under Section 8.***

j. The Trust, either directly or through its advisors, shall: (1) contract for fiduciary liability coverage, that includes coverage for errors and omissions of the Trustees with a minimum annual coverage amount of \$1,000,000.00; (2) contract with a licensed trust company or other financial institution to hold the Local 440 Benefit Plan(s) assets in the name of the Trust; (3) contract with a third party administrator ("TPA") who is duly licensed and in good standing

in the state of Texas to administer the Trust, which may include the payment of claims; (4) put in place a fidelity bond with coverage in an amount that is equal to \$500,000 covering all persons who handle the Local 440 Benefit Plan(s) assets.

k. Funds transferred by the City to the Trust pursuant to Article 15 of the CBA, or any successor CBA, must be segregated from other Trust funds and used for the sole benefit of participants who were hired on or after January 1, 2009 (“Post January 1, 2009 Retiree Account”), and who subsequently retired from the City.

l. The Association agrees that every duty or obligation of the Trust that is stated in this Agreement, including, but not limited to, the obligations to indemnify, hold harmless and defend the City, is also a duty or obligation of the Association. If the Trust fails or refuses to timely perform any such duty or obligation, the City may require the Association to take action to satisfy such duty or obligation, and the Association can satisfy the Trust’s duty or obligation by either fully performing that duty or obligation itself, or by causing the Trust to fully perform the duty or obligation.

m. The Association shall retain all responsibility and liability for the collective bargaining obligations incidental to funding for the Trust and their obligations under the “appointing fiduciary” doctrine with regard to any Trustee appointed or elected by the Association.

Section 4. City Contributions and Adjustments to Payments from City.

a. All of the City Contributions will be used only for the purposes of providing benefits to the Covered Populations that are permitted under the rules and regulations of the Internal Revenue Service adopted pursuant to Code Section 501(c)(9).

b. For purposes of determining the City subsidy level for each plan, it will be assumed that:

i. The City’s HSA Plan and its successors is equivalent to the Association’s HSA plan; and

ii. The City’s Health Center Plan and its successors is equivalent to the Association’s non-HSA plan.

c. The City Subsidy will reflect the amount that the City would have contributed (excluding amounts paid by employees) for each enrolled member of the Covered Populations had they enrolled in the City Healthcare Plan. The subsidy rate for each City Healthcare Plan will be computed annually and used to determine the City Contributions for the corresponding Local 440 Benefit Plan.

d. The City Subsidy shall be based on an actuary’s rate workup for the upcoming plan year that is supported by monthly paid claims and administration costs for General

Employees and Police. Changes to the City Subsidy for purposes of calculating the City Contributions will be limited to an annual increase or decrease of +/- 3%. In the event that, during the term of this Agreement, either the General Employees or Police are no longer part of the City's Healthcare Plan, both parties agree to negotiate in good faith the basis of the new base calculation for the City Subsidy, and the +/- 3% limitation will not apply. Upon mutual agreement of the new City Subsidy, the City Contributions in future calendar years will be limited to an annual increase or decrease of +/- 3%.

e. The City Contributions will be limited to members of the Covered Populations who would otherwise be eligible to participate in the City's Healthcare Plan as determined by the City for each plan year. For example, the parties understand and agree that if the City decides to discontinue coverage for working spouses, the Trust can continue to cover such persons under the Local 440 Benefit Plan(s), but the City Contributions will not include any money attributable to the cost of coverage for working spouses during the time that working spouses would not otherwise be eligible for coverage under the City's Healthcare Plan.

f. In order to calculate the City Contributions, on a monthly basis, the City will (i) multiply the City Subsidy times the number of actual enrollees in the corresponding Local 440 Benefit Plan; and (ii) make the following adjustments:

i. The City Subsidy for the 2019 plan year was reduced by 13.3% and in each future year, the then-current subsidy will be reduced by 15.2%. The intent of these reductions is to ensure the City does not pay more to provide coverage for Covered Populations under the Local 440 Benefit Plan(s) than it would under the City's Healthcare Plans with such percentages reflecting the fact that a member of the Covered Populations generally costs the City less than the hypothetical "average" City Healthcare Plan participant. The percentages are calculated on the basis of annualized 2017 claims projections for the Covered Populations;

ii. The City Contributions will be reduced by the third-party administrative costs and/or insurance premiums associated with any benefits and services that the Covered Populations continue to receive from the City, including, but not limited to, life insurance, HSA and FSA administration, and Employees' Assistance Program;

iii. Deduction of the City's annual HSA contributions beginning in plan/calendar 2019; and

iv. The City Contributions will be reduced by any additional administrative and premium costs incurred by the City as a result of the Covered Populations being removed and excluded from the City's Healthcare Plans, thereby reducing the number of covered lives and increasing the City's per-covered-life cost for its remaining plan participants; such costs include but are not limited to those associated with third-party administration, pharmacy benefit management, voluntary dental insurance, and voluntary disability insurance.

The actual amount of the City Contributions shall be calculated each month to reflect the actual number of participants in the Local 440 Benefit Plan(s) who would have been eligible for coverage in the City's Healthcare Plan during that plan year and who are enrolled in the Local 440 Benefit Plan(s) as of the first day of the month.

g. While this Agreement is in effect, if the City adopts reference-based pricing, resulting in quantifiable reductions in the City Subsidy, the City will negotiate in good faith with the Association to maintain the City's Contribution without regard to these savings. That notwithstanding, if the City adopts reference-based pricing, the 3%+- corridor described in Section 4d shall continue to apply.

h. In the event that the City determines it is necessary to deposit funds into the City's active or retiree healthcare funds to restore fund balance or to adopt a mid-year supplemental appropriation due to the cost of excess claims, the City is not responsible for making a similar supplemental appropriation to the Local 440 Benefit Plan. Since the Trust solely controls the Local 440 Benefit Plan, City Contributions will be limited to the calculations outlined in Section 4 and the Trust will be responsible for ensuring the sustainability of the plan design based on that City Contribution.

i. The Association will be responsible for confirming the eligibility and actual participation/enrollment of the Covered Populations and reporting such information to the City on a timely basis. The Association shall provide affidavits, as requested by the City, from members of the Covered Populations to verify whether they would be eligible for coverage or not under the City's Healthcare Plan, including for non-working retirees or retiree spouses, to support the monthly calculation of the City Contribution. If the City is otherwise performing a dependent audit of its other health plans, the Trustees may elect to include the Trust's health care plans in such dependent audit programs, provided that the City gives sixty (60) days advance notice to the Trust and the Association of the upcoming dependent audit. If the Trustees elect not to participate in the City's dependent audit verification program, the Trust shall establish its own dependent verification audit program on the same timeline or intervals as the City's health plans.

j. The City will directly bill the Trust for the City's actual costs for each item listed below unless the parties mutually agree by a separate letter agreement to allow compensation for administrative costs in another manner. The City shall allow payments from the Trust to be made in equal parts for the remaining months of the Local 440 Benefit Plan(s) year in which the bill is sent.

i. Direct expenses of the City paid to a third party in facilitating the implementation and on-going operation of the Local 440 Benefit Plan(s), including but not limited to, technology, file interfaces and legal costs;

ii. Members of the Covered Populations will not be eligible for participation in the City's Wellness Program in 2019 or beyond because a primary intent of the

Program is to reduce and control claim costs for participants on the City's self-funded healthcare plan.

k. Since fewer than 100% of all retirees eligible to participate in the Local 440 Benefit Plan have waived their rights to access to the City Healthcare Plan, the City and the Association agree that the City will continue to offer the City Healthcare Plan to those individuals who did not choose to participate in the Local 440 Benefit Plan so long as they are eligible.

The parties have agreed to an annual reconciliation of the costs of retirees who remain covered by the City Healthcare Plan instead of the Local 440 Benefit Plan, namely for coverage of:

- (i) any Pre-Medicare Retiree who did not choose to enroll in the Local 440 Benefit Plan and remained on or enrolled in the City Healthcare Plan; and
- (ii) any Retiree who is part of a married couple (one of whom is Medicare-eligible and one of whom is not Medicare-eligible) that has chosen to not enroll the Pre-Medicare spouse in the Local 440 Benefit Plan and, as a result, will have split coverage for those two spouses between City Medicare and the City Healthcare Plan.

The annual reconciliation of costs shall be done as follows:

No later than 180 days after the end of the plan year, City will determine the claims incurred and amounts actually paid by the City under the City's Healthcare Plan for the calendar year. The City will also determine any employer and employee premium payments owed for such coverage period.

After reconciling the premium payments and claims incurred and paid by the City's Healthcare Plan (not otherwise paid by the City Healthcare Plan's stop-loss carrier), the City will remit to the Trust any surplus employer/employee premiums, if any, in excess of the claims incurred (and actually paid by the reconciliation date).

In the event that for a particular calendar year claims exceed the annual employer/employee premiums associated with any member of this group, the City will not pay to the Trust any surplus premiums for that calendar year, and instead will withhold from future premiums otherwise payable to the Trust (payable at least 30 days after the reconciliation is provided to the Local Association and Trustees of the Trust) a sum of money equal to the amount by which the adjusted claims paid exceeded the premiums collected for the group. In determining the adjusted claims costs, only claims up to the aggregate and individual stop-loss attachment rates / factors established by the Local 440 Benefit Plan for the year in which the claims were incurred shall be included.

Any reimbursement amounts received via third-party reimbursements / subrogation claims shall first reimburse the City for any retained claims in excess of the Association's stop loss limits (not credited in the previous paragraph). If additional reimbursements are available, the Association Healthcare Plan will be credited for that

amount to the year in which the claims were incurred, rather than when the reimbursements were paid and resulting adjusting payments between the parties shall be included in the next subsequent annual adjustment following the subrogation claim reimbursement.

l. In the event of a dispute, controversy or claim arising out of or relating in any way to this Agreement, the complaining Party shall notify the other Party in writing thereof. Within thirty (30) days of such notice, management-level representatives of both Parties shall meet at an agreed location to attempt to resolve the dispute in good faith. Should the dispute not be resolved within thirty (30) days after such notice, the Parties will attempt to resolve any disputed issues through mediation, using a mediator whose principal office is in the Dallas-Fort Worth metropolitan area. If the Parties cannot agree to a mediator, the choice of mediator will be determined by a coin toss. If the Parties cannot resolve the disputed issues through mediation, the Parties may, but are not required to, submit the disputed issues to binding arbitration. The demand for arbitration by either Party shall be made within a reasonable time after the claim, dispute or other matter in question has arisen, and in no event shall it be made after two years from when the aggrieved Party knew or should have known of the controversy, claim, dispute or breach. If the disputed issues are submitted to arbitration, the City and the Association may, within ten (10) calendar days after the Parties both have agreed to submit the matter to arbitration, mutually agree to a neutral arbitrator whose principal office is in the Dallas-Fort Worth metropolitan area. If the Parties are unable to agree on such an appointment, the City and Association shall, within five (5) calendar days, jointly request a list of seven (7) arbitrators from the American Arbitration Association or the Federal Mediation and Conciliation Service. Within ten (10) calendar days following receipt of the list of arbitrators, the Parties shall select an arbitrator by each Party in turn striking one name from the list until only one (1) name remains. The remaining individual on the list shall serve as the arbitrator. The Party who makes the first strike will be determined by a coin toss. The arbitrator so selected shall be promptly notified of his or her selection through the agency selected, and the Parties and the arbitrator shall agree on a time, place and date for the hearing of the arbitration. The selected agency's rules will govern the progress of the case. The laws of the state of Texas shall be applied in any arbitration proceedings, without regard to principles of conflict of laws. The losing Party at arbitration will be responsible for paying the prevailing Party's arbitration-related costs, including the arbitrator's and agency's fees. However, each Party shall be responsible for paying its own attorney's fees. If the Parties agree to arbitration, arbitration will be deemed to be final and binding, and an election of remedies. Any appeal of an arbitrator's decision in this procedure shall be strictly and solely limited to the grounds that the arbitrator exceeded their authority and jurisdiction as provided under this Agreement; that the decision of the arbitrator was procured by fraud or collusion or that the arbitrator's decision is based upon a clear and manifest error of law. The parties agree that, in the event either party declines to participate in binding arbitration, venue for any dispute arising under this Agreement shall be in the state District Courts of Tarrant County, Texas. The parties further agree that this Agreement is subject to Subchapter I, Chapter 271, Texas Local Government Code.

m. The City can review, on an annual basis, its workers' compensation medical and pharmacy claims made by Recruits and Fire Fighters and, if the City determines that its claims experience with workers' compensation claims has resulted in increased workers' compensation

medical and pharmacy costs for what have traditionally been considered to be a normal disease of life, and not a workers' compensation-covered illness, the City can require that the City and the Association re-calculate the City's Contributions on a prospective basis.

n. The City Contribution will be made to the Trust no later than seven (7) Business Days following each published City payday for active employees. The City Contribution will be made to the Trust no later than seventh business day of each month for Retirees covered by the Local 440 Benefit Plan. The Trust will be required to receive payment of the City Contributions via electronic or wire transfer.

o. The City will include Retirees covered by the Local 440 Benefit Plan in the monthly enrollment file to the Employees' Retirement Fund.

p. The Trust and the City shall cooperate to reconcile contributions as needed, which shall generally include at least one reconciliation per pay period. Any overpayments or underpayments discovered in the reconciliation process will be resolved in the next City Contribution cycle. However, this provision does not preclude later resolution if it cannot be resolved by the next period or if the error is discovered later than the next pay period.

q. If the City is delinquent in remitting the City Contributions, beginning on the fourteenth (14th) Business Day following each published City payday, the City shall pay the Trust simple interest at the rate of 0.0137% per calendar day on the owed balance until the City Contribution owed for that month is paid in full. This daily amount is equivalent to five percent (5%) per annum. No interest will attach to any partial delinquency (limited to 3% of contribution) associated with correction of errors identified during the reconciliation process.

r. All costs direct-billed to the Trust by the City shall be remitted to the City within thirty (30) days of the date of the invoice.

s. If the Trust is delinquent in remitting payments to the City for directly invoiced services, beginning on the thirty-first (31st) calendar day, including City holidays and weekends, following the invoice date, the Trust shall pay the City simple interest at a rate of 0.0137% per calendar day on the owed balance until the Trust payment owed for that month is paid in full. This daily amount is equivalent to five percent (5%) per annum.

t. The City will make deductions from payroll for Recruit and Fire Fighter contributions to the Trust for benefits being received through the Local 440 Benefit Plan(s). Where required, written authorization from the Covered Populations to allow for a pre-tax deduction pursuant to the City's Healthcare Plan under Code Section 125 will be provided to the City prior to the time deductions are made. The Parties will determine a procedure that facilitates this process, allows for pre-tax deductions where appropriate, and minimizes the administrative burden on the City.

u. The Trust shall have sole responsibility for contracting with the Fort Worth Employees' Retirement Fund to collect premiums from Pre-Medicare Retirees and remit the funds to the Trust, unless otherwise mutually agreed or if it becomes necessary for the City to

assume responsibility because the Fort Worth Employees' Retirement Fund is unable to perform the necessary transactions. This sole responsibility shall include any necessary exchanges of data in order to cause the premiums to be collected.

v. City Contributions associated with Article 15 of the CBA intended to benefit fire fighters hired on or after January 1, 2009, shall be accounted for separately within the Trust as the Post January 1, 2009 Retiree Account and used exclusively for the intended purpose.

i. The parties acknowledge that a request for a legal opinion will be presented to the Texas Attorney General ("Texas AG") regarding the options available to the Post January 1, 2009 Retiree Account for investments, including whether the Texas Public Funds Investment Act ("the PFIA") or other Texas law applies to the Post January 1, 2009 Retiree Account, and specifically to investments made by the Post January 1, 2009 Retiree Account. After receipt of that legal opinion, the parties agree to work together, in good faith, and in consultation with experienced employee benefits counsel, to determine what changes, if any, need to be made to the language of the Trust, and any related documents, in light of that legal opinion. If the parties cannot agree on the effect of that legal opinion on the options available to the Post January 1, 2009 Retiree Account for investments, either party can seek to have the issue resolved by a court of competent jurisdiction.

ii. If the Texas AG declines to render a legal opinion, as requested above, the parties agree that they will work together, in good faith, and in consultation with experienced employee benefits counsel, to determine the appropriate steps necessary, if any, for the Post January 1, 2009 Retiree Account to comply with applicable law, or, alternatively, if the parties disagree on the need for, or the text of, any changes to the language of the Trust, or the options available to the Post January 1, 2009 Retiree Account for investments, either party may seek to have the issue resolved, by seeking an opinion or ruling from the IRS, and/or resolution through a court of competent jurisdiction.

Section 5. Transition and On-Going Communication.

a. The Trust shall handle open enrollment for participants, and coordinate with the City as appropriate for any necessary payroll deductions or other items related to the on-going operations of the Trust. The City may communicate with participants with regard to any City administered benefit plans and any other matter related to the City's relationship with the Covered Populations. The Trust, in consultation with the City as appropriate, will develop any joint communications necessary for the operations of the Trust. Otherwise, the Trust and Association will be responsible for communications with participants, including all materials related to summary plan descriptions, plan documents, and other similar items. All such documents shall be subject to review by the City's ex officio trustee no later than fourteen (14) days prior to distribution. The purpose of this review is to ensure accuracy of information regarding City participation and to prepare for City administration of certain benefits and payroll withholding consistent with this Agreement.

b. Unless otherwise agreed in this Agreement, the Association represents to the City that member education, question responses and problem resolution will be the ultimate responsibility of the Trust, which may engage the TPA and/or the broker hired by the Trust to perform such tasks.

c. The Association confirms that within twelve (12) months of Transition Date, the Trust provided the City written notice from any applicable regulating agency that all required actions/approvals are in place, or that approval is not required.

d. The standard transition processes applicable in the insurance industry when a self-insured employer changes from one health plan to another will apply. All Post-Transition Claims shall be the responsibility of the Local 440 Benefit Plan.

e. Members of the Covered Populations on COBRA coverage (offered pursuant to Federal requirements) as of the Transition Date will remain on the City's Healthcare Plan. For all COBRA coverage (pursuant to Federal requirements) for the Covered Populations initiated on or after that Transition Date, the Local 440 Benefit Plan(s) will have responsibility for meeting all COBRA notification and coverage requirements.

g. The City shall have no financial or advisory responsibility for the tax consequences to the Covered Populations who move from the City's high-deductible plan to the Association's basic plan. The City shall have no financial responsibility to provide a reimbursement to the Trust for HSA contributions invoiced to the Trust for those participants on a City high deductible plan prior to the Transition Date who do not elect a high deductible plan with the Local 440 Benefit Plan(s).

h. Since the City collects premiums for 26 pay periods to cover 12 plan months, there is a potential for mismatch of revenues and expenditures during the transition year. Prior to finalization of the Transition Date, the City and the Association will agree to equitably split the pay periods that exceed two per month to reflect the proportion of the year covered by each plan.

Section 6. Open Enrollment and Data Exchanges

a. The City shall provide necessary data files only to the Trust's TPA to accompany each of the City Contributions, including Recruit and Fire Fighter payroll deductions. The Association and/or Trust shall be responsible for all data file interfaces with other vendors. All data files must meet the City's specifications for use in the City's payroll system. An illustrative flow chart outlining this process is attached as Exhibit B but may be modified by mutual agreement from time to time to reflect the needs of the City or the Trust.

b. Per the Internal Revenue Service, only the employer is allowed to maintain a 125 Plan authorizing pre-tax payroll deductions. Therefore, in order for the participants to make pre-tax premium contributions through payroll deductions, the Local 440 Benefit Plan(s) will be offered to Recruits and Fire Fighters under the City's 125 plan.

c. The Trust shall provide to the City specific plan design, premium information and education materials for the Local 440 Benefit Plan(s) no later than sixty (60) calendar days prior to the beginning of the initial open enrollment period and of each subsequent City open enrollment period. Plan selection data following the Trust's open enrollment will be provided by the Trust to the City within thirty (30) calendar days of the conclusion of each open enrollment or by December 1 of each year, whichever is earlier.

d. The Trust shall be responsible for the administration, and management of open enrollment for Pre-Medicare Retirees and coordinating such open enrollment with the City of Fort Worth Employees Retirement Fund ("ERF") for the deduction of premiums from the benefit payments made by the ERF to Pre-Medicare Retirees.

e. The Trust shall be responsible for developing all required employee/retiree benefit notices and customized communications necessary for open enrollment and other communications as needed or requested.

f. The Association and the Trust are responsible for exchanging accurate and complete required information with the City during the open enrollment period for any of the Covered Populations. The Association and the Trust are also responsible for exchanging accurate and complete required information with the ERF in connection with any amounts that must be deducted from retirement benefits to pay premiums for the Local 440 Benefit Plan(s).

Section 7. Reporting Responsibilities

a. The Trust is anticipated to be deemed a component unit of the City, as defined by the Governmental Accounting Standards Board ("GASB"), and will be reported and administered as such.

b. The Trust shall operate on a fiscal year that coincides with the fiscal year of the City of Fort Worth, which is currently October 1 through September 30.

c. The Trust shall operate the Local 440 Benefit Plan(s) on a plan year that coincides with the plan year of the City of Fort Worth, which is currently January 1 through December 31.

d. Annually, the Board of Trustees shall engage an external auditor who is a licensed Certified Public Accountant and qualified to review audited financial statements of the Trust. The audit shall be conducted in a manner that provides compliance with auditing standards acceptable to both the City and Trust for purposes of complying with their respective regulatory obligations. Any finding resulting from the annual external audit, including a material weakness or significant deficiency shall be forwarded to the City along with a corrective action plan simultaneous with the submission of the audited financial statements.

e. The Trust shall submit the audited financial statements that are necessary for the City's Comprehensive Annual Financial Report ("CAFR") by January 1st of each year for the previous fiscal year.

- i. All financial statements and reports shall be prepared in compliance with Governmental Accounting Standards Board pronouncements; and the Trust shall be responsible for implementation of any new GASB pronouncements issued subsequent to the Effective Date of this Agreement.
- ii. The Trust shall use the City's determined measurement date for GASB calculations and submit an annual actuarial calculation in compliance with GASB pronouncements to the City four (4) months from the measurement date.

f. Within 90 days of any request by the City, the Board of Trustees shall provide to the City the necessary data for the City to prepare an actuarial valuations of the medical and pharmacy costs for the Covered Populations that distinguish between active and retired participants, including Incurred But Not Reported claims (IBNR). In the event that the City is required to prepare a separate valuation for the Local 440 Benefit Plan in order to satisfy the City's auditor, the cost will be billed directly to the Trust following the provision of a cost estimate to the Trust prior to the commencement of the work.

g. The Ex-Officio Trustee appointed by the City shall have access to the same financial information about the Trust's operations as other Trustees, including access to the financial records, contracts, or other operating aspects of the Trust. To the extent feasible, the City's Internal and External Auditor shall rely on the work performed by the Trust's independent auditor with regard to the Trust's financial statements and related activities. To the extent such work performed is insufficient, the City shall provide notice to the Trust of the additional records / or financial reports to be reviewed by the Trust's auditor, or the additional records necessary for the City's auditor to review any financial activity of the Trust.

h. The Trust shall provide an Annual Report as noted in the Trust document that includes information required by the US Department of Labor incidental to the Trust's annual Form 5500 filing.

i. Within 90 days after the conclusion of the Plan year, the Trust and the City shall share through a mutually agreeable third-party full claims data from the respective TPAs including, but not limited to, medical, pharmacy, and dental benefits. The purpose will be to evaluate the success of reference-based pricing and any future applicability to either the Trust's or the City's Healthcare Plan.

j. Within 90 days after the conclusion of Plan years 2024 and 2025, the Trust shall provide to the City unidentified claims by Current Procedural Terminology (CPT) code in order to analyze differences in claims experience by group in preparation for future City Contribution calculations for subsequent Collective Bargaining Agreements.

k. The Board of Trustees shall be responsible for compliance with all Federal and State legal requirements applicable to the Trust, including but not limited to reporting obligations, privacy and security obligations, and fiduciary duties.

l. The Board of Trustees shall provide to the City certificates of coverage for the fidelity bond, and fiduciary coverage that shall include liability coverage for Trustees, as well as any errors and omissions coverage protecting the assets of and participants in the Local 440 Benefit Plan(s) and the Trust no later than January 1 of each year.

m. The Board of Trustees shall notify the City within thirty (30) calendar days of the date on which the Trust receives a complaint or grievance filed by a member of the Covered Populations related to the Trust's coverage or benefits, or of any notice, investigation or inquiry from a state or federal government agency regarding the Trust or its operations.

n. The Board of Trustees shall notify the City within three (3) Business Days of the date on which the Board first becomes aware of any actual or alleged theft or misappropriation of Trust assets.

Section 8. Coverage if Trust Fails to Provide Coverage.

a. The Parties agree that if the Trust is unable to provide healthcare coverage at any level for any of the Covered Populations, at any time, for any reason, the Covered Populations will be eligible to resume participation in the City's Healthcare Plan on a prospective basis after the City is notified by the Association and the City establishes an administratively feasible effective date for the return of the Covered Populations to the City's Healthcare Plan (the "Return Effective Date"). The cost to the Covered Populations, will be based on the then-existing rates for similarly-situated employees, and eligible spouses and/or dependents. Any subsidy of the cost for coverage under the City's Healthcare Plan will be based upon the rules governing such type of coverage that are in place at the Return Effective Date.

b. If any of the Covered Populations become eligible to return to the City's Healthcare Plan, under the circumstance described in paragraph 8(a), above, the City shall have no liability for, nor be required to pay for, any healthcare received by the Covered Populations prior to the Return Effective Date.

c. If any of the Covered Populations will be eligible to return to the City's Healthcare Plan, under the circumstance described in paragraph 8(a), above, and the City has already paid to the Trust the City Contributions for that member of the Covered Populations for the month that includes the Return Effective Date, the member of the Covered Populations will not be entitled to rejoin the City's Healthcare Plan, until either: (1) the member of the Covered Populations or the Trust repays the City the amount of money paid by the City, by or on behalf of the member of the Covered Populations, for that member of the Covered Populations' healthcare coverage for that month; or (2) the first day of the next month of eligibility, provided that the member of the Covered Populations pays the City in advance all amounts owed for coverage under the City's Healthcare Plan for that month. If a member of the Covered Populations does not make such financial arrangement to return to the City's Healthcare Plan, the member of the Covered Populations shall no longer be eligible for City healthcare coverage, until the next open enrollment for the City's Healthcare Plan.

d. Prior to the re-enrollment of any member of the Covered Populations, the Trust shall provide all necessary data including a minimum of the prior twenty-four (24) months of claims, enrollment census, COBRA coverage enrollees, and all Trust records for such member of the Covered Populations.

Section 9. Legal.

a. The Trust will comply with all applicable state and federal laws. Without limiting the foregoing, this includes HIPAA, COBRA, and PPACA. The Association shall retain all responsibility and liability for the collective bargaining obligations incidental to funding for the Trust and their obligations under the “appointing fiduciary” doctrine with regard to any Trustee appointed or elected by the Association.

b. Because on-going administration of the City’s Healthcare Plan and benefits plans and the Local 440 Benefit Plan(s) may necessitate the sharing of protected health information, or PHI, the City, the Association, and the Trust will execute one or more business associate agreements, in substantially the form attached hereto as Exhibit C, that allow for mutual access of PHI in accordance with federal law.

Section 10. INDEMNIFICATION

a. THE CITY IS NOT RESPONSIBLE (INCLUDING FIDUCIARY RESPONSIBILITY) FOR ANY OF THE ACTIONS OF THE ASSOCIATION OR THE TRUST. THE TRUST SHALL DEFEND, INDEMNIFY, AND HOLD HARMLESS THE CITY FROM ANY AND ALL LIABILITY THAT RELATES IN ANY WAY TO THE OPERATION OF THE TRUST OR PROVIDING HEALTH CARE BENEFITS TO THE COVERED POPULATIONS. WITHOUT LIMITING THE FOREGOING, THE TRUST SHALL DEFEND, INDEMNIFY, AND HOLD HARMLESS THE CITY FROM ANY AND ALL LIABILITY RELATING TO CLAIMS THAT ARE THE RESPONSIBILITY OF THE TRUST.

IN THE EVENT THE TRUST HAS INSUFFICIENT ASSETS TO PERFORM ITS OBLIGATIONS, UNDER THIS AGREEMENT, THE ASSOCIATION WILL DEFEND, INDEMNIFY, AND HOLD HARMLESS THE CITY FROM ANY AND ALL LIABILITY THAT RELATES IN ANY WAY TO THE OPERATION OF THE TRUST OR THE ASSOCIATION.

b. THE ASSOCIATION, AT ITS SOLE COST AND EXPENSE, HEREBY AGREES TO DEFEND, INDEMNIFY, PROTECT, AND HOLD HARMLESS THE CITY AND THE CITY’S OFFICERS, REPRESENTATIVES, AGENTS EMPLOYEES, AND SERVANTS (COLLECTIVELY, "INDEMNITEES") FOR, FROM AND AGAINST ANY AND ALL CLAIMS, LIABILITIES, DAMAGES, LOSSES, LIENS, CAUSES OF ACTION, SUITS, JUDGMENTS AND EXPENSES (INCLUDING, BUT NOT LIMITED TO, COURT COSTS, ATTORNEYS' FEES AND COSTS OF INVESTIGATION), OF ANY NATURE, KIND OR DESCRIPTION ARISING OR ALLEGED TO ARISE BY

REASON OF ANY CLAIM, CAUSE OF ACTION OR LOSS: (1) RELATING TO ANY DECISION MADE OR ACTION TAKEN BY THE ASSOCIATION, THE TRUST, OR THE BOARDS OR OFFICERS OF EITHER; (2) BY REASON OF ANY OTHER CLAIM WHATSOEVER OF ANY PERSON OR PARTY OCCASIONED OR ALLEGED TO BE OCCASIONED IN WHOLE OR IN PART BY ANY ACT OR OMISSION RELATED TO THE HEALTHCARE PLAN ON THE PART OF THE ASSOCIATION, THE TRUST OR ANY OF SUCH PARTIES' BOARD OR OFFICERS, REPRESENTATIVES, AGENTS, SERVANTS, EMPLOYEES, OR CONTRACTORS, INCLUDING THE TPA AND ANY BROKER HIRED BY THE ASSOCIATION, TRUST, OR TPA; (3) RELATING TO ANY HEALTHCARE SERVICES RENDERED, EXPENSES INCURRED, OR PREMIUMS OWED PRIOR TO THE EFFECTIVE DATE OF A MEMBER OF THE COVERED POPULATIONS' RETURN TO THE CITY'S HEALTH PLAN; (4) FAILURE OF THE TRUST OR ASSOCIATION TO COMPLY WITH ALL APPLICABLE STATE AND FEDERAL LAWS; AND (5) RELATING TO THE INSOLVENCY OF THE TRUST, OR THE TRUST HAVING INSUFFICIENT FUNDS IN THE TRUST TO PAY PREMIUMS OR COVER THE COST OF CARE FOR ANY MEMBER OF THE COVERED POPULATIONS.

c. Each member of the Covered Populations eligible to enroll in the Local 440 Benefit Plan(s), at each open enrollment, whether administered by the City or the Trust, shall be required to acknowledge and agree to the following as a condition of enrolling in the Local 440 Benefit Plan(s):

I AGREE AT MY SOLE COST AND EXPENSE, TO DEFEND, INDEMNIFY, PROTECT, AND HOLD HARMLESS CITY AND THE CITY'S OFFICERS, REPRESENTATIVES, AGENTS EMPLOYEES, AND SERVANTS (COLLECTIVELY, "INDEMNITEES") FOR, FROM AND AGAINST ANY AND ALL CLAIMS, LIABILITIES, DAMAGES, LOSSES, LIENS, CAUSES OF ACTION, SUITS, JUDGMENTS AND EXPENSES (INCLUDING, BUT NOT LIMITED TO, COURT COSTS, ATTORNEYS' FEES AND COSTS OF INVESTIGATION), OF ANY NATURE, KIND OR DESCRIPTION ARISING OR ALLEGED TO ARISE BY REASON OF ANY CLAIM, CAUSE OF ACTION OR LOSS: (1) RELATING TO ANY CLAIM BY ME, MY ELIGIBLE SPOUSE OR DEPENDENT(S) THAT THE DECISION TO PARTICIPATE IN THE LOCAL 440 BENEFIT PLAN(S) IS UNENFORCEABLE, VOID OR VOIDABLE AS TO ME OR SUCH ELIGIBLE SPOUSE OR ELIGIBLE DEPENDENT; (2) RELATING TO ANY HEALTHCARE SERVICES RENDERED TO, EXPENSES INCURRED BY, OR PREMIUMS OWED BY ME, MY ELIGIBLE SPOUSE OR ELIGIBLE DEPENDENT(S) WHILE COVERED UNDER THE LOCAL 440 BENEFIT PLAN(S); (3) RELATING TO ANY DECISION MADE OR ACTION TAKEN BY THE TRUST, OR ITS BOARD OF TRUSTEES OR OFFICERS CONCERNING THE LOCAL 440 BENEFIT PLAN(S) CONCERNING ME, MY ELIGIBLE SPOUSE OR DEPENDENT(S); (4) BY REASON OF ANY OTHER CLAIM WHATSOEVER RELATED TO THE LOCAL 440 BENEFIT PLAN(S), OF

ANY PERSON OR PARTY CONCERNING ME, MY ELIGIBLE SPOUSE OR DEPENDENT(S), CAUSED OR ALLEGED TO BE CAUSED, IN WHOLE OR IN PART, BY ANY ACT OR OMISSION OF THE ASSOCIATION, THE TRUST OR ANY OF SUCH PARTIES' BOARD OF TRUSTEES OR EITHER'S OFFICERS, REPRESENTATIVES, AGENTS, SERVANTS, EMPLOYEES, OR CONTRACTORS.

If any action or proceeding shall be brought by or against the City or any indemnitee in connection with any such liability or claim, the Association, on notice from the City, or any indemnitee, shall defend such action or proceeding at the expense of the Association, by or through attorneys reasonably satisfactory to the City.

The City and the Association agree that, with respect to any legal limitations now or hereafter in effect and affecting the validity or enforceability of the indemnification obligations under this Section, such legal limitations are made a part of the indemnification obligation and shall operate to amend the indemnification obligation to the minimum extent necessary to bring the provision into conformity with the requirements of such limitations, and as so modified, the indemnification obligation shall continue in full force and effect.

The Association agrees to notify City promptly of, and in any event no later than the fifth (5th) Business Day after the receipt of any claim or lawsuit brought in connection with any claim made relating to the Agreement, the Trust, the benefits provided to any member of the Covered Populations through the Trust, or healthcare services provided to any member of the Covered Populations pursuant to coverage provided (or supposed to be provided) under this Agreement and/or by or through the Trust. The Association and the Trust agree to make their officers, Board members, representatives, agents, (including TPAs and consultants) and employees available to City, at all reasonable times, for any statements and case preparation necessary for the defense of any claims or litigation.

Section 11. Preemption. This Agreement shall preempt any contrary provisions set forth in Ch. 2, Art. V, Sec. 2-190 of the Fort Worth Code and Chapter 175 of the Texas Local Government Code, provided however that nothing herein shall be construed or interpreted to preempt Section 2-190(c) or (d) or otherwise require the City to subsidize health care coverage for any individual who is not otherwise eligible for a subsidy.

Section 12. Term of this Agreement.

a. This Agreement (Appendix B of the 2022-2026 CBA) shall be effective upon the Effective Date and shall remain in effect regardless of the expiration or termination of the CBA, and regardless of whether a new collective bargaining agreement is executed by the 30th day of September, 2027.

b. This Agreement shall remain in full force and effect until September 30, 2031, or until such time as it is superseded by a new agreement between the Parties, whichever occurs earlier; provided however, that in no event shall this Agreement continue in effect after September 30, 2031. This provision notwithstanding, indemnifications required by this Agreement in Section

10 shall survive the expiration or termination of this Agreement.

Section 13. Miscellaneous Provisions

a. Contract Construction. The Parties acknowledge that each Party and its counsel have reviewed and revised this Agreement and that the normal rules of construction to the effect that any ambiguities are to be resolved against the drafting party shall not be employed in the interpretation of this Agreement or exhibits hereto.

b. Severability. If any provision of this Agreement is held to be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired.

c. Force Majeure. If either Party is unable, either in whole or part, to fulfill its obligations under this Agreement due to acts of God; strikes, lockouts, or other industrial disturbances; acts of public enemies; wars; blockades; insurrections; riots; epidemics; public health crises; earthquakes; fires; floods; restraints or prohibitions by any court, board, department, commission, or agency of the United States or of any state; declaration of a state of disaster or of emergency by the federal, state, county, or City government in accordance with applicable law; issuance of a Level Orange or Level Red Alert by the United States Department of Homeland Security; any arrests and restraints; civil disturbances; or explosions; or some other reason beyond the Party's reasonable control (each a "Force Majeure Event"), the obligations so affected by such Force Majeure Event will be suspended only during the continuance of such event.

d. Fiscal Funding Limitation. In the event no funds or insufficient funds are appropriated and budgeted or are otherwise unavailable by any means whatsoever in any fiscal period for payments due under this contract, then the City will immediately notify the Association of such occurrence and this Agreement shall be terminated on the last day of the fiscal period for which appropriations were received without penalty or expense to the City of any kind whatsoever, except to the portions of annual payments herein agreed upon for which funds shall have been appropriated.

e. Right to Audit. The Association and the Trust agree that the City's designated independent auditor shall, until the expiration of three (3) years after final payment under this Agreement, have access to and the right to examine any directly pertinent books, documents, papers and records of the Trust involving transactions relating to this Agreement. The Trust agrees that the City's designated independent auditor shall have access during normal working hours to all necessary facilities and shall be provided adequate and appropriate workspace in order to conduct audits in compliance with the provisions of this section. The City shall give the Association and the Trust reasonable advance notice of intended audits.

f. No Third-Party Beneficiaries. The provisions and conditions of this Agreement are solely for the benefit of the City, the Association, the Trust, members of the Covered Populations, and their lawful assigns or successors, and are not intended to create any rights, contractual or otherwise, to any other person or entity.

g. Venue and Jurisdiction. Should any action, whether real or asserted, at law or in equity, arise out of the execution, performance, or attempted performance of this Agreement, venue for said action shall lie in the state district courts, Tarrant County, Texas.

h. Applicable Law. This Agreement shall be construed under and in accordance with Texas law to the extent not otherwise preempted by ERISA (or other applicable federal law).

i. Notices. Notices to be provided hereunder shall be sufficient if forwarded to the other party by hand-delivery or via U.S. Postal Service certified mail, postage prepaid, to the address of the other party shown below:

If to City:	If to Association:
City of Fort Worth Attn: Asst. City Manager of HR and Benefits 200 Texas Street Fort Worth, Texas 76102	IAFF Local 440 Attn: President 3855 Tulsa Way Fort Worth, Texas 76107-3345

j. Paragraph Headings. The paragraph headings contained herein are for the convenience in reference and are not intended to define or limit the scope of any provision of this Agreement.

k. Assignment and Successors. The Association shall not assign or subcontract all or any part of its rights, privileges, or duties under this Agreement without the prior written consent of the City. Any attempted assignment of this Agreement without the City's prior written approval shall be void and constitute a breach of this Agreement.

If City grants consent to an assignment, the assignee shall execute a written agreement with the City and the Association under which the assignee agrees to be bound by the duties and obligations of the Association under this Agreement. The Association and Assignee shall be jointly liable for all obligations under this Agreement prior to the assignment. If the City grants consent to a subcontract, the subcontractor shall execute a written agreement with the Association referencing this Agreement under which the subcontractor shall agree to be bound by the duties and obligations of the Association under this Agreement as such duties and obligations may apply. The Association shall provide the City with a fully executed copy of any such subcontract.

l. Compliance with Laws, Ordinances, Rules and Regulations. The Association and the Trust, their officers, agents, servants, employees, and subcontractors, shall abide by and comply with all laws, federal, state and local, including all ordinances, rules and regulations of the City. It is agreed and understood that, if the City calls to the attention of the Association or the Trust any such violation on the part of the Association, the Trust or any of either's officers, agents, servants, employees, or subcontractors, then the Association or Trust shall immediately

desist from and correct such violation. This section shall survive the expiration or termination of this Agreement.

m. Counterparts. This Agreement may be executed in one or more counterparts and each counterpart shall, for all purposes, be deemed an original, but all such counterparts shall together constitute but one and the same instrument.

n. Breach/Termination/Opportunity to Cure. If either Party commits a material breach of this Agreement, the non-breaching Party must give written notice to the breaching Party that describes the breach in reasonable detail. The breaching Party must commence curing such breach within fourteen (14) calendar days after the time the breaching Party receives such written notice and complete the cure within fourteen (14) calendar days from the date of commencement of the cure. If the breaching Party does not substantially cure such breach within the stated period of time, the non-breaching Party may, in its sole discretion, and without prejudice to any other right under this Agreement, law, or equity, terminate this Agreement by giving written notice to the breaching Party; provided, however, if the breach is not reasonably susceptible to cure by the breaching Party within such fourteen (14) day period, the non-breaching Party shall not exercise its option to terminate this Agreement so long as the breaching Party has commenced to cure the default within such fourteen (14) day period and diligently completes the work within a reasonable time without unreasonable cessation of the work to complete the cure.

o. Amendment. No amendment, modification, or alteration of the terms of this Agreement shall be binding unless the same is in writing, dated subsequent to the date hereof, and duly executed by the Parties.

p. Signature Authority. Each person signing this Agreement hereby warrants that he or she has the legal authority to execute this Agreement on behalf of his or her respective party, and that such binding authority has been granted by proper order, resolution, ordinance or other authorization of the entity. The other party is fully entitled to rely on this warranty and representation in entering into this Agreement.

q. Governmental Powers. The Association and the Trust agree and understands that the City does not waive or surrender any of its governmental powers by execution of this Agreement.

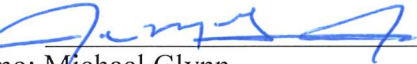
r. Non-Waiver. The failure of either Party to insist upon the performance of any term or provision of this Agreement or to exercise any right herein conferred shall not be construed as a waiver or relinquishment to any extent of the City's, the Association's, or the Trust's right to assert or rely on any such term or right on any future occasion.

s. Entire Agreement. This written instrument (together with any attachments, exhibits, and appendices) constitutes the entire understanding between the Parties concerning the work and services to be performed hereunder, and any prior or contemporaneous, oral or written agreement that purports to vary from the terms hereof shall be void.

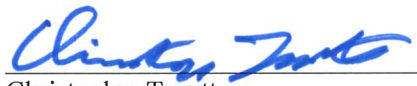
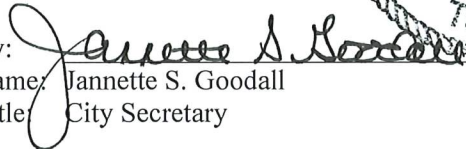
t. Compliance with State Anti-Boycott Law. The Association and the Trust acknowledges that in accordance with Chapter 2270 of the Texas Government Code, the City is prohibited from entering into a contract with a company for goods or services unless the contract contains a written verification from the company that it: (1) does not boycott Israel; and (2) will not boycott Israel during the term of the contract. The terms “boycott Israel” and “company” shall have the meanings ascribed to those terms in Section 808.001 of the Texas Government Code. ***By signing this Agreement, the Association and the Trust each certifies that its signature provides written verification to the City that the Association and the Trust: (1) does not boycott Israel; and (2) will not boycott Israel during the term of this Agreement.***

(Signature page follows)

IN WITNESS WHEREOF, THE PARTIES HAVE CAUSED TO HAVE THIS AGREEMENT TO BE SIGNED BY THEIR DULY AUTHORIZED REPRESENTATIVES ON THIS 4th DAY OF November, 2022.

City of Fort Worth: By: <u></u> Name: David Cooke Title: City Manager Date: <u>11/4/2022</u>	FORT WORTH PROFESSIONAL FIREFIGHTERS ASSOCIATION, LOCAL 440: By: <u></u> Name: Michael Glynn Title: President Date: <u>11/04/2022</u>
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CITY OF FORT WORTH INTERNAL ROUTING PROCESS:

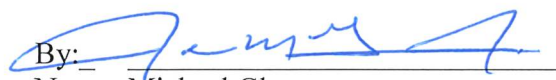
Approved as to Form and Legality: By: <u></u> Name: Christopher Troutt Title: Assistant City Attorney Contract Authorization: M&C: <u>22-0878</u>	Contract Compliance Manager: By signing I acknowledge that I am the person responsible for the monitoring and administration of this contract, including ensuring all performance and reporting requirements. <u></u> <u>11/7/22</u> Name: Valerie Washington Title: Assistant City Manager City Secretary: By: <u></u> Name: Jannette S. Goodall Title: City Secretary
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By execution hereof, I acknowledge and agree on behalf of the Fort Worth Firefighters Local 440 Healthcare Trust (the "Trust")

- that I have legal authority to bind the Trust,
- that I have reviewed the Trust Agreement and understand the same
- that I hereby bind and commit the Trust to compliance with the terms of the Trust Agreement
- that I have reviewed the Healthcare Contract between the City of Fort Worth and the Fort Worth Professional Firefighters Association (the "Agreement")
- that I understand the Trust's rights, responsibilities, and duties under the Agreement and
- that I hereby bind and commit the Trust to compliance with the Agreement.

TRUST:

By:  11/04/2022
Name: Michael Glynn
Title: Chairman of the Trust